

THE
PRESENT STATE
OF THE
BRITISH INTEREST
IN
INDIA:
WITH A
PLAN FOR ESTABLISHING
A
REGULAR SYSTEM OF GOVERNMENT
IN THAT
COUNTRY.

L O N D O N :
Printed for J. ALMON, opposite Burlington House,
in Piccadilly.
M D C C L X X I I I .
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Transcriber's Note:

Footnotes have been collected at the end of the text, and are linked for ease of reference.

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Chapter I

No nation nor state ever acquired an accession of dominion so truly valuable and beneficial, as are the acquisitions lately made by Britain in India. But the particular situation of her circumstances at the time when these acquisitions fell into her hands, enhanced the real and intrinsic value of them to Britain. Oppressed by a grievous debt, the annual interest of which, exceeding four millions and a half sterling, was levied by taxes, which raised the price of each manufacture, her commerce labouring under such disadvantages was daily sinking into decay; whilst a considerable part of this annual interest being paid to foreigners, created such a drain of specie, as the balance of her trade could not supply; so that, in proportion as her expence increased, the means of defraying it diminished; and she was every year approaching towards a state of national poverty and bankruptcy.

In such circumstances did Britain acquire the sovereign dominion of Bengal, and of other rich manufacturing and trading countries in India; which, at the time they fell to her, were capable of not only defraying every charge of their own government and defence, but over and above that, of yielding annually to the sovereign a sum equal to 1,300,000 l. sterling, as can be readily demonstrated. Nor do we include in this sum the benefit which Britain had been accustomed to receive, in her commercial capacity, by her trade with those countries: the sum here specified would have arisen purely in consequence of dominion: and, whether transmitted from those countries in merchandize or in money, would at last have arrived at the public treasury in specie: and would thus have served to alleviate the burden of those taxes, that are pressing every branch of her domestic commerce to ruin. And, if Britain had bestowed the smallest attention on the political government of those countries, she might have continued to draw from them the abovementioned tribute sum *in perpetuum*, without any danger of draining or impoverishing them: nay it is certain, that under a just, equitable and well ordered government, their commerce and

agriculture might have been extended to a degree, that would have enabled them to afford a still larger annual tribute to the sovereign. The possession of this Indian dominion is likewise so particularly secured from domestic and foreign danger, by the extraordinary submissive disposition of the natives, the singularly defensible situation of the country, and the naval superiority of Britain, that, by a very trifling expence of men, and no pecuniary charge, she might have maintained it against all enemies. So that Britain might have derived from this dependent dominion resources sufficient to relieve her from all her difficulties and distresses.

This is what Britain might have done: and this was not simply possible, it was easy of execution. But if we enquire what Britain hath done, we shall find that, instead of applying these resources by a proper care and attention to the purpose, for which it would seem the all-wise dispensation of Providence had at this critical conjuncture bestowed them upon her, she hath indolently and desperately thrown them from her, and left them to the will of blind chance. For surely it may with propriety be said, that the government of Britain consigned all these resources to the guidance of blind chance, or rather to certain destruction, when it scrupulously withheld its own care, and implicitly confided the sovereign charge of governing and defending this foreign dominion to a Company of Merchants, so evidently unequal to such a charge, that, instead of being surprized that these countries should now at last be impoverished and ruined, we have reason to be astonished, that they have supported, for such a length of time, the complicated evils of tyranny and anarchy.

The consequences of committing this sovereign charge to the Company have been long foreseen, and likewise foretold, by some who were acquainted with the nature of their government: but the power and influence of those who were sharing amongst them the plunder of those wretched countries, blasted the credit of their representations: until at last, the effects being felt at home, it hath become impossible to totally suppress the truth. Nay even now, that these men are forced to partly acknowledge the ruinous situation of this foreign dominion, yet have they still the assurance to mislead the public judgment, by representing the Company as the only party concerned in the consequence: though it is certain, that this Indian concern, which hath been leased or farmed out by Government to the Company, is of the very highest importance to the public interest, as having

been for many years the principal support of national opulence and credit, as well as of commerce and revenue. For, in the article of opulence, the private fortunes acquired in those countries by the servants of the Company, ever since the time that their power prevailed over the native government, that is ever since 1757, hath created an annual influx of specie to Britain of about 700,000 l. and the dedomagement paid to Government by the Company, since the assumption of the dewanny in 1765, is a farther influx of 400,000 l. the drawback on teas is reckoned about 200,000 l. and the Company hath increased her dividend since the last mentioned period 200,000 l. though only one half of this last sum may be reckoned to remain in the country, the other half being paid to foreign proprietors. These four sums, making together 1,400,000 l. have been yearly drawn from India in consequence of dominion: and, whether sent from thence in merchandize, in bills, or in specie, have produced so much money to Britain: and notwithstanding the private fortunes have been acquired by means that have exhausted these sources of wealth, that might otherwise have flowed perpetually into Britain; and the dedomagement may be considered as a base composition, received for alienating the sovereign rights of the British crown and nation, and for furnishing a force to support the most detestable tyranny of a few individuals over fifteen millions of men, who are to all intents and purposes British subjects; yet did the opportune importation of so much wealth, serve to support the credit of the nation under the grievous accumulation of debt contracted in the last war; and to prevent her feeling the drain of specie made by her foreign creditors, which otherwise would by this time have completely exhausted her. By her commerce with those countries, Britain hath exported yearly 5 or 600,000 l. worth of her own manufactures and merchandize, and for these she received the commodities of India; which commodities, being re-exported, formed the most essential article of her traffic with Africa, on which her West India colonies do entirely depend; they are likewise the most valuable article of her trade with America. And the duties levied by Government, on such part of these Indian commodities as is expended at home, create a very considerable, and by far the most equitable and convenient branch of revenue.

But the value and importance of this Indian concern will appear in a still stronger light, if we shall look forward to the consequences that must naturally and unavoidably ensue to the public interest from the loss of it. The first and most immediate of these consequences will be national

bankruptcy; or, which is the same thing, a stop to the payment of interest on the national debt; for a deprivation of that annual influx of specie from India will quickly produce national poverty; and an incapacity of paying in specie the interest of the foreign creditors. But the loss of our Indian commerce will operate this effect still more speedily; for, on the supposition that the nation shall be deprived of this branch of commerce, it must necessarily follow, that Government will lose that branch of revenue which arises from the home consumption of Indian commodities; and it is plain, that Government cannot then continue to pay the usual expence, without making good this deficiency of revenue by additional taxes on land, and the necessaries of life: but as this additional load, falling on our little remaining commerce, would by one year's experience be found insupportable, Government would be forced to retrench its expence, in that only article that can be dispensed with, the payment of interest on the national debt; and when this happens, what advantage will the public creditor hold above the India proprietor? The only difference will be, that the latter will have felt his loss a little earlier than the former. But national bankruptcy, though it may be the first, is not the only, nor even the greatest, public damage, accruing from a deprivation of this Indian concern: loss of future credit, of trade and navigation, and consequently of naval power and defence, will soon follow; and, in this general calamity, everyone individual of the community will come in for his share, in proportion to his rank or situation.

Such are the consequences that must ensue to the public interest from a deprivation of the benefit hitherto derived from this Indian concern: and if the nation is to suffer so grievously by the loss of this object, can she allow herself to be persuaded, that she hath no interest in its preservation. Now this object stands in danger of being lost to the nation by two different causes; the first being, the neglect or incapacity of the Company to maintain and defend it from the assault of enemies: and the other danger arises from the oppression and misconduct of this Company's political government; tending to despoil those countries of their circulating specie, their arts, manufactures, commerce, and inhabitants, which were the only means that enabled them to afford this benefit to Britain. The first of these dangers is scarcely dreamt of, and yet it is perhaps immediately imminent; at present however we are treating of the danger to be apprehended from the political cause.

How far the interest of this foreign dominion hath been injured by the Company's political misgovernment; or how near it may be reduced to a state of utter inability to afford any farther benefit to Britain, is but little known by the public. For though people have heard in the gross, that affairs in those countries are rather in a bad situation, yet do not they either understand or believe it to be so very bad as it really is; or rather they do not comprehend how it should be so bad; as not being acquainted with the full power of the cause that hath produced the evil; and every one will form his notion of effects that he neither feels nor sees, from his knowledge or opinion of the nature and power of the causes that produced them. In the case before us, people have been taught to consider the oppression and extortion of its government, (of which certain instances are quoted) as the sole cause of evil to Bengal: of consequence it is supposed that Bengal hath suffered no farther damage from its government, than what may have been caused by some private acts of extortion, exercised by the few persons vested with the powers of governing: and, besides that the authenticity of these acts is denied or disputed, and men who are to judge only from report are apt to make allowance for the prejudice or passion of the accuser who brings a charge against individuals; still if all these acts of oppression that have been narrated should be fully credited; nay, if the hearer should suppose still more than is represented, yet cannot he conceive or allow himself to believe that such acts of extortion, exercised by a small number of individuals, could suffice to reduce the lately rich commercial kingdom of Bengal to such a deplorable state of misery, poverty, and distress: the cause assigned will appear too trivial for the effect; and of course the effect, at least the degree of it, will be discredited.

But he who means to acquire a just notion of the present state of those countries, and the extent of damage they have sustained from their present Government, must fully inform himself of the true nature and condition of that Government, and the manner of its operation on the general interest of the people governed; he must learn, not only that which it hath done, but likewise that which it hath not done; for the interest of a community may suffer far more detriment from the nonaction, than from the oppression, of its government. To the end, therefore, that every one may be enabled to form a proper judgment on these matters, we mean to present a general view of the nature, and effects, of the Company's Government in Bengal.

THE NATURE AND EFFECTS OF THE COMPANY'S GOVERNMENT IN BENGAL.

The English East India company is, under the title of Dewan, the real and actual sovereign of Bengal, Behar, and Orixas: a dominion equal to almost any one state in Europe, in respect of either extent and fertility of country, or numbers of ingenious and industrious subjects; and exceeding most of them in the internal materials of commerce, or resources of wealth. The Company executes the government of this dominion by a deputation, consisting of a Governor and Council; who reside at Calcutta, the Company's original presidency, or chief factory in Bengal. And the Directors, who, as possessing the executive authority of the Company, may be termed the supreme sovereigns of this Indian dominion, have preserved to themselves the sole power of immediately ordering, directing and controuling the government; for this deputed government communicates its purposes, receives its orders, and accounts for its conduct to none but the Directors.

But it is evident, that the distance of situation must render the immediate controul of the Directors perfectly impotent, ineffectual, and nugatory; for it would be absurd to suppose, that the government of Bengal should defer the execution of any one purpose until it shall have communicated with, and received the opinion of the Directors, which cannot be effected in the space of a whole year; consequently the directors cannot interfere in the direction, or ordering of this government, farther than in some few cases of the most general or invariable nature: but the execution of even these general orders depends upon the will and discretion of the deputed government; seeing the Directors cannot, at that distance, enforce it themselves: and the same cause puts it out of their power to prevent or restrain abuse; so that they hold neither positive nor negative authority in the immediate execution of this government. And the condition or situation of these directorial sovereigns at home, renders their retrospective controul equally impotent and ineffectual;

for they have no power in themselves to inflict other punishment on their deputies, for the most audacious disobedience, or for maladministration, than dismissal from their service; and this becomes no punishment, because the delinquents are previously prepared for it, being ready to set out of their own accord with a princely fortune for the mother country; where they set the authority of the Directors at defiance; for there these sovereigns of India are themselves subjects, and cannot call their quondam ministers to account, except in an ordinary court of justice; and the difficulty of obtaining evidence requisite to convict in these courts; the dread of bringing to light, in the course of a legal process, some abstruse mysteries of government; and the apprehension of danger arising to the interest of the present direction from a powerful combination at the next election, will ever deter the Directors from seriously prosecuting a lawsuit against their deputies, even in cases of speculation from the sovereign; but if it respects only the interest of the subject, they will be more apt to palliate and defend the offence. We must therefore perceive, that this deputed government acts perfectly independent of either the immediate controul, or future awe of the sovereign: whilst the sovereign is compelled to blindly support, with its whole power, the authority of this government; and, without choice, to enforce all its measures; seeing that to oppose the will of the deputy, is opposing the authority of the sovereign.

And, as to the native subjects, the power of this deputed government over them is perfectly absolute and complete. For the inhabitants of those countries, being disposed by nature or climate to passive obedience, and by long custom habituated to despotic authority, and being farther impressed with a particular awe of Europeans, from a notion of their natural superiority, implicitly submit to the will of their present government, without once daring to either examine its right, dispute its authority, or question its conduct. The subject therefore holds not the smallest voice in the administration of government; the jurisdiction, the police, the finances, the military government and defence, are all incontrollably directed by the Company's deputation: and the entire interests of those countries, the lives and property of the inhabitants, are subjected to its discretion, and depend on its will.

So that this deputation of the Company executes the government of Bengal with a power perfectly unlimited by any exterior controul; and if we

consider that it is at the same time foreign to the country governed, mutable, and of very short duration, we shall find that it is equally unrestrained by any internal check. It is therefore the most unlimited government on earth; or rather it is the only government that can, with propriety, be termed arbitrary and despotic.

For all other deputed governments are sufficiently restrained by the authority of the sovereign; and we have no idea of despotism, except in governments that are supreme or sovereign. But the idea of actual despotism in a supreme government is merely imaginary; seeing that, in one and all of these governments, the power of governing is conditional, limited by rule, and subjected to controul both external and internal. For it is evident, that, in all supreme governments, the power of governing, and the means that support this power, must needs be derived from the people governed; and therefore cannot exist in despite of their consent; and though, in some of these governments, the condition, upon which this power and these means are granted, is not specially expressed, yet is it perfectly understood, and invariably enforced in all of them; inasmuch as there are examples in each, of sovereigns who have suffered the utmost punishment, for attempting to transgress the limits of this condition; nay, there is scarce one instance where the prince, thus transgressing, escaped the resentment of the people; and examples of this nature are most frequent in these governments that are falsely termed despotic. These examples must therefore convince all sovereigns, that there is a power in the people, superior to, and capable of controuling them; and the sense of this must ever prove an effectual external controul on the conduct of a supreme government. But self-interest, that *primum* and *perpetuum mobile* of human action, which we may term an internal check, operates still more forcibly, constantly, and immediately on the will of a supreme government; not simply restraining it from doing or permitting injury, but impelling it to promote the good of the people governed. For a government that is sovereign, and perpetual (or *durante vita* and hereditary) cannot possibly separate its own private interest from that of the community which it governs; being indeed itself a part of that community: and this is so evident, that no prince ever attempted to advance a distinct interest of his own, at the expence of the general weal, who was not a fool, before he became a tyrant. But a wise sovereign considers his people as the channel through which alone he can receive substantial good or evil; and, acting upon this

principle, he will, however absolute and disposed by nature to tyranny, abstain from injuring the general interest, because he is sensible that such injury will recoil upon himself; and he will exert himself to promote the prosperity of his people, as the only means of advancing his own power, grandeur, or wealth. So that a sovereign prince, who understands his own real interest, though otherwise void of virtue, will ever study to govern well; nay, the private vices of such a prince do often operate public good; a striking instance of which we meet with in our Henry the Seventh; whose extreme and sordid avarice was the source of English commerce and wealth; and his mean self-love, and jealousy of power, established universal liberty.

But the nature of this Bengal government differs, in every circumstance, from that of a supreme government; being deputed, foreign, mutable, and temporary, it is no way interested in the lasting prosperity of the community which it governs; on the contrary, this government holds an interest which is not only distinct from, but diametrically opposite to that of the subject. For these Governors return to Europe immediately on the expiration of their office, which seldom dures above three years, often less; therefore their sole aim is to amass all the wealth they can, during the short term of their power, in order to transport it along with their persons to their own country. But the wealth which a government amasses, must needs be extorted from the people governed; consequently self-interest leads this government to pillage and plunder the subject: and we have seen that it is not restrained, by any external controul, from advancing its own distinct interest at the expence of the community which it governs, seeing it is perfectly exempted from all awe of either the sovereign or the subject; and it cannot be restrained by any internal check, because it holds no concern in the lasting welfare of the people.

Such then is the ruling principle of this government: nor are the means which it employs to promote its own interest less extraordinary than is its power to enforce them. For this government, which arbitrarily directs the jurisdiction and police, together with the imposition and collection of taxes, doth at same time act in the capacity of a merchant. And this commercial despotism, or despotic power lodged in the hands of a few foreign merchants, hath, in its nature and consequences, proved infinitely more destructive to the interest of that commercial country, than all the operations

of political tyranny have been: for from it sprung these cruel monopolies, which struck at the very root of manufacture, commerce, and even population.

To attempt describing the particular methods which this government hath practised to promote its own interest at the expence of the people, in its double capacity, of an absolute sovereign and a despotic merchant, would be a tedious, invidious, and even an unprofitable undertaking; for it is almost impossible to properly delineate the conduct of a tyranny so various and irregular in its operations; and, to those who are unacquainted with the modes, customs, and interests of the country in question, the recital of a few particular instances would only serve to mislead their judgment, and darken or diminish the truth. By attending to the general description given of the nature views and interests of this government, we shall form a more complete and just notion of its conduct and deportment, than can be acquired from any disjointed account of particulars. Let us suppose a few foreigners sent into a rich commercial country, with absolute and unlimited power over the lives and property of the inhabitants; actuated by no other principle than that of acquiring riches, and stimulated thereto not only by avarice but ambition, or the desire of excelling; unrestrained by any species of present awe or future apprehension; but on the contrary, encouraged by precedent to expect in their own country, titles, dignity, respect, and consequence, each in proportion to the sum he imports; and whatever methods we can suppose would be practised by such foreigners, to accomplish their purpose, within a short limited term, we may suppose to have been actually employed by this Bengal government. The enormous amount of numerous fortunes, imported by the persons employed in this government, together with the rapidity of acquisition, are circumstances seen and known in this country; and these will thoroughly warrant our supposing, that the acquirers have availed themselves to the utmost of their powers, as well as their opportunities. However, we shall err greatly in our estimate of the damage caused to those countries, by their government's prosecuting its own distinct interest, if we shall confine the reckoning to only the loss of so much specie, as hath been extorted and exported by these foreigners: for this, though in itself a ruinous grievance, is merely trivial, when compared with the havoc and waste committed on the manufacture, the commerce, agriculture, and population, by the methods employed to acquire these sums. A herd of hogs, broke into a well dressed vineyard, will

gorge their voracious maws; but that which they eat and devour doth not destroy the vineyard; it is their manner of eating, their rutting up, their tearing down, and trampling under foot.

Hitherto we have regarded this government in only one point of view: we have seen it acting for itself; but we have not seen the part it acts for the people, in its capacity of a sovereign ruler, administering the government of a mighty state in all its different offices or departments; and entrusted with the care of the whole and entire interests of a numerous commercial nation. But, in the discharge of this sovereign trust, we shall find the government of Bengal a mere *Vis inertiae*, void of the two efficient principles of action, ability or power of acting, and will or inclination. For how can we expect to find the ability, of governing well, in the men employed by the Company to execute the government of those countries? to attain the knowledge of any one science or mystery, demands an effort of the mind; but it is impossible for the brightest natural genius to arrive at even a moderate degree of skill in the art of governing, which, as it is the most elevated, so is it the most difficult, abstruse, various and complicated of all human sciences, without long and intense application, study, and reflection; and, we may add, a series of practice; and all these gradations to skill, in governing, are wanting to our Bengal governors. Their scholastic education extends no farther than to qualify them for merchants clerks; and, immediately on being taken from school, they are dispatched to India; where the manner of life is consonant to the climate, voluptuous to a degree of dissoluteness, vain, idle, dissipated, and an enemy to study or reflection: the juvenile part of their life being spent in this manner, they arrive at the charge of government with minds perfectly uninformed, and so very averse to application, that they commit and implicitly confide the charge of their own private concerns to servants. If such men should possess the skill or address of governing well, it must certainly be acquired instantaneously and supernaturally; infused into them by miracle, like the gift of speech into the ass of Balaam.

But the want of will or inclination is an obstacle to their governing well, still more prevalent than is the want of ability. Labour, fatigue, and difficulty are evils, to which the human mind is so naturally averse, that, unless it is urged by some strong impulse of passion, such as the fear of some superior evil, or the hope and desire of some mighty good, it will decline and evade them: what stimulum then can be sufficiently powerful to

urge the habitually indolent minds of our Bengal governors to encounter the difficulties, the labour, and fatigue attending a due discharge of the duties of government; which, of all human undertakings, is the most replete with these mental evils? Yet this government, which demands a stronger stimulum than any other government that ever yet existed, is in effect urged by no one motive or consideration to discharge the duties of its office; for, as it holds no interest in the lasting welfare of the people governed, neither its hopes nor its fears are at all interested in the good or evil consequences that may be caused by its own vigilance or neglect: being altogether superior to the resentment of the subject, and independent of the sovereign's authority, it is not impelled, by the fear of immediate danger, nor the apprehension of future punishment: and as to the prospect of glory, applause, or respect, which push the generous and ambitious mind to action, our governors aim to attain them, not by governing well, but by acquiring and bringing home a mighty fortune to their own country.

Men thus actuated, or rather unactuated, must, in the discharge of their sovereign office, be perfectly torpid and listless; the machine of political government stops in their hands, and stands stock still: their minds being incapable of application, they withdraw themselves as much as possible from attention, and leave the trouble of governing to others, still less qualified than themselves; these inferior agents being chosen, not for their abilities or virtue, but for their fitness to serve the private purpose of the governors, otherwise by chance; but they give themselves no trouble to inspect the conduct of these agents, who in general are unprincipled miscreants; on the contrary, they promiscuously approve and support every action; so that, wherever the power of this government acts, it is only to oppress; and all beside is left to chance. However, the power of governing, or rather of oppressing, is not confined to the persons vested with the charge of government: the numerous servants whom this Company disperses over the face of the country, for the purpose of carrying on her trade, do each of them, in his own district, assume the authority of a despot; and communicates a like authority to all his servants and dependants, who, it must be allowed, are far more unrelenting than their masters; and thus tyranny is extended into every corner; oppression becomes general; and the oppressed are excluded from the very prospect of redress; for, on appeal to the superior, the plaintiff is ever remanded to the very oppressor, who punishes him for having dared to complain. And thus justice and protection

are no where to be found; vice goes unpunished, and innocence unsupported; therefore every man becomes a villain in his own defence; and faith, confidence, truth, and honesty are banished the land. In short, it may with strict propriety be said by these wretched people, *Terras astræa reliquit*; and tyranny and anarchy have here set up their throne.

And to this inaction or non-exertion of the powers of government we are to impute the ruin of those countries, rather than to the avarice or rapine of the persons deputed by the Company to execute that government. For the power of governing being vested in only a few, the extortion of these few might have been long supported by a rich commercial country, provided they had exerted themselves to restrain and prevent all others from plundering and oppressing. The avarice, profusion and bloody tyranny of even Nero, and Domitian, was felt by only a few of their subjects at Rome; every where else the empire flourished; because these imperial monopolizers of vice would suffer none in power to be wicked but themselves; they narrowly inspected the conduct of their governors and officers, and severely punished their injustice or oppression. But where the government doth not only plunder itself, but suffers every one under it to plunder, that country must in time be completely ruined.

Now Bengal hath been subjected to a government of this nature for these fifteen years past; for though we commonly date the commencement of the Company's sovereignty from the assumption of the Dewanny, (as it is termed,) yet hath this Company (at least her deputies) possessed a really absolute authority in those countries ever since the battle of Plassey in 1757. That action rendered them masters of Bengal; and it was equally within their power to assume the sovereign government at that time, as afterwards in 1765; their own will was the only obstacle: but notwithstanding they bestowed it on a native Nabob, yet did they retain an absolute superiority over him, and he governed in a state of perfect subordination to their authority; for he well knew and experienced, that the duration of his office, and even of his existence, depended upon their will; consequently this dependent native government could but little restrain the conduct of the Company's deputies, or protect the subject from their rapacity; and when they, in 1765, set aside this native government, they only removed a screen which they themselves had set up, and till then preserved for their own purpose.

How far these countries may have advanced towards the period of final ruin, under the fifteen or sixteen years domination of such a government, we shall not pretend to determine, because the term *ruin* is variously understood. This much is certain, that the unbounded remittance of specie made, for some years, by the English Company, for sundry purposes as sovereign; and for a much greater number of years, and in much larger sums by the other European Companies, who received it from the servants of the English Company for bills on Europe, at a very low exchange, and employed it for every purpose in the other parts of India and China, hath compleatly drained Bengal of its wealth, and reduced it to a state of the most abject poverty. And the grievous oppression and rapine exercised by the Company's servants, and their numerous dependants; together with the most cruel monopolies usurped by them over every species of merchandize, and even the necessities of life, hath in a great measure suppressed commerce, and abolished trade. Whilst the insatiable avarice and unrestrained extortion of those employed in the collection of taxes and revenue having ruined the farmer, the lands lay uncultivated and waste; insomuch that, not to mention the immense decrease of revenue, that naturally most fertile of all countries, Bengal, hath suffered a more severe famine than perhaps was ever heard of; it being reckoned that a fifth part of the inhabitants have died of want, and numbers have fled from starving and oppression.

But it is not difficult to determine how near the interest of Britain in those countries hath approached to ruin: for Britain is to consider them as ruined to her purpose, so soon as they shall become incapable of supporting a commerce beneficial to her; and at same time of yielding her a consideration, in the nature of tribute, equivalent to the expence of subjects which she sends out annually to maintain her dominion there. And that they are nearly, if not totally, ruined to her, in both these respects, we begin already to feel, in spite of all the art or influence used to conceal the truth.

For, in the article of tribute, we find that, instead of receiving such a surplus of revenue as sufficed, at the commencement of the Dewanny, to not only pay for the specie part of the Company's investment in Bengal itself, but to purchase her cargoes, and defray all her charges in the other parts of India, and in China, the government of Bengal was, two years ago, reduced to the necessity of borrowing near a million sterling on bills, which have been

transmitted and accepted by the Company: in like manner hath this government been obliged to borrow last year; though the bills have been prevented, by an arbitrary stroke of deceit, from appearing against them in Europe. These borrowed sums have all been expended in Bengal itself: and if we allow that the whole hath been employed to pay for the Company's investment, (though by the by the specie part of the Company's investment cannot, at least it ought not, if she exports the proper quantity of European commodities, exceed half a million,) it must even then be admitted, that the revenue of Bengal hath barely sufficed to defray the ordinary expence of government. And, if so, from whence is the tribute of Bengal, (whether we term it dedomagement, drawback, or encreased dividend) to arise? not from the mighty cargoes imported; for they are purchased, not with surplus revenue, but with borrowed money, which must be repaid either in India or in Europe: and as to the profits on these cargoes, they will be more than eat up by the charges of freight, and a long reckoning of India interest at eight per cent. I am sensible, that this account is strangely perplexed and embarrassed by intricate calculations of stock in hand, annual importations, and future sales, &c. but when divested of all these studied intricacies it will stand simply thus—As is the clear surplus of revenue received in Bengal, so will be the amount of tribute received in Britain; the former will ever exactly balance the latter. But this surplus we find to have been, for the two past years, equal to nothing; and the amount of tribute received in Britain must amount to exactly as much; consequently the dedomagement, drawback, and increased dividend for the two last years is still *in Nubibus*; where the national part, consisting of the two first articles, is like to remain; unless it shall be paid out of the Company's capital stock, as the encreased dividend hath been. But this revenue, which for the two years past hath barely sufficed to defray the expence of government, hath not been kept up even to that extent without the aid of violence: but violence itself must yield to necessity, and cannot extort that which doth not exist; moreover the Company had, in these two years, decreased her military expence, by disbanding some thousand sipahis, and otherwise diminishing the charge of her remaining force; and the attack made by Shaw Allum in conjunction with the Mharrattors will, this year, compel her to re-augment her military expence in every respect; whilst the predatory incursions of these Mharrattors will prevent the collection of revenue; how then will she support the augmented charge of this year, with a revenue decreased by a

variety of causes so much below the degree of last year? Another loan upon the strength of the capital is the only resource; but possibly borrowing may, for several reasons, have become impracticable by this time; and it is certain that troops will not, nay cannot, serve without pay—Here is a blessed prospect indeed.

But, leaving this to the proof of time, we perceive that, at any rate, we have lost the prospect of future tribute from Bengal, through the channel of the Company; we have not so much as the promise of dedomagement, drawback, or encreased dividend for this current year; and if we can trust to our own reason, preferably to bankrupt promises, we may give it up for good and all. Nay, there is mighty reason to apprehend, that even the private fortunes will soon cease to exist; and then Britain will cease to receive the sum of 1,400,000 l. sterling, which for a number of years past hath been annually flowing in to her from India, in consequence of dominion. And if she could barely support her burden, when aided by this influx, how will she, when deprived of it, answer the annual drain of specie made by her foreign creditors?

With respect to the present state of our commerce with those countries, it is not enquired, and therefore not known, whether the Company exports the stipulated sum of British commodities or not; and it is still less known, whether the small quantity she hath exported of late is disposed of; or whether it remains in her warehouses abroad, to swell up the account of her stock; thus much however reason tells us, that the inhabitants of Bengal, who cannot procure the necessaries of life, millions having died of want, can but little afford to purchase foreign fopperies or superfluities. Nevertheless we have seen large cargoes of Indian manufactures imported this very year; but we are not to suppose, that these cargoes are the produce of willing industry; they are procured by force and compulsion; the artisan being held to work under the discipline of task masters, who deprive him of his labour before it is completed, at a price that will not afford him the means of living. Of the many markets that for ages had taken off the manufactures of Bengal, Europe is now the only one remaining; and this one market cannot be supplied without the application of force. How long force might supply the place of willing industry, we shall not pretend to determine; but one year more will discover the united effects of want of artisans, want of money, and Mharrattor incursions.

And thus have we demonstrated the nature and condition of this Bengal government, together with the evils it hath caused to the country governed, not from a recital of disputed facts, but from principles universally understood and admitted. For every one, the least acquainted with the Company's affairs, must know and will allow that the views, the interests, the powers and opportunities of her deputed government in Bengal are exactly such as we have described them; and upon this one undisputed *datum* we have built our whole demonstration; the truth and justness of which every man is capable of trying and proving, by the touchstone of his own reason. For reason, without the aid of circumstantial proof, can judge whether the line of conduct which we have assigned to the government of Bengal, is fairly inferred and deduced from its evident and allowed principle of action: and common sense, unassisted by demonstration, will point out the effects that such conduct must operate on the interest of the country governed; and, if we farther advert to the length of time that this country hath been subjected to such operation, we shall nearly guess at its present state and condition.

And we doubt not, that what hath been said will enable every one, who makes use of his own reason and reflection, to form a proper judgment for himself on certain points of this East India business, which have been most grossly misrepresented. For he will thereby discover, that the object, for which the nation hath to apprehend at present, is not the "*credit* of the Company;" which, had she been restrained within her natural sphere, and her conduct properly inspected by government, could never have been injured; or, if it had, the breach could (in such case) have little more affected the general weal, than the failure of any large trading house; which, so long as the trade remained entire, would have been immediately replaced by another; but he will perceive, that the present bad state of the Company's credit is only an effect, or consequence, of the ruinous situation of affairs in India; and, of course, that the object of national apprehension is the ruin or loss of that mighty and important branch of national interest, which hath been committed to the charge of the Company, in a manner so complete and implicit, that the name, as well as the interest of the nation, nay the very name of the object itself, hath been sunk and lost in that of the Company: this Company, which is but the temporary farmer, having been, to all intents and purposes, substituted in the stead of not only the sovereign proprietor, but even of the farm itself. And it will farther appear, that the danger which

threatens this object is not to be averted by blindly supporting the credit of the Company: but, on the contrary, that the nation will, by affording this blind support, only furnish the means of completing that ruin, which is already so far advanced. To prevent this danger demands measures of a very different nature: and we shall proceed to point out these measures; which, had they been applied in time, would, we humbly conceive, have sufficed to prevent the ruin or loss of this important concern: and which, if matters are not past remedy, may yet serve to restore them.

THE TRUE CAUSES OF EVIL AND ABUSE IN THE GOVERNMENT OF BENGAL, AND THE MEANS TO REMEDY THEM.

It is a common saying that, the cause of an evil being known, the remedy is readily discovered; and, upon the strength of this maxim, several, who think they have hit upon some one cause of evil in the political government of Bengal, have taken upon them to prescribe a remedy; which is pronounced an universal panacea, a salve for every sore: but no sooner have they produced their ware, than the eye hath discovered it to be mere powder of post; or something equally unavailing.

Few of these prescriptions have at all attracted notice; the proposal for protecting the liberty of the subject from the despotism of government, by the institution of native juries, was indeed extremely well calculated to please British speculation; and therefore, like the device of hanging the bell about the cat's neck, it was highly applauded by those who never adverted to the difference betwixt Britain and Bengal, in point of general constitution of government and disposition of the natives. But, for practice, it must appear a mere chimera to such as consider, on the one hand, that men, who are slaves to their government and its officers in every other capacity, cannot possibly be free in that of jurymen; and that juries, if they are not free and impartial, avail nothing: and, on the other hand, that if the natives should be actually endowed with the real cap of liberty in the jury room, there is danger, nay, there is a certainty, that they would make bold to wear it elsewhere; and then, adieu to the English dominion in Bengal. In few words, the power of the English government, and the freedom of native juries, are two things that cannot possibly exist together in Bengal; the life of the one must unavoidably cause the death of the other: and, however harsh this doctrine may sound in a freeborn English ear, the force and truth of it will immediately strike the politician.

Equally unavailing is that proposal for securing the liberty and property of the subject, from the oppression and extortion of government, by granting to the native a perpetual property in land; without providing him the smallest security for the free possession of its produce; which, so long as government stands on its present footing, is liable to be wrested from him so soon as acquired.

But it would seem, that the reason why these political physicians have been so unlucky in their prescriptions is, that they have proceeded upon false principles; as having mistaken the nature of the malady. For they have either assigned no one certain cause of evil; or else they have traced it no farther than to the persons who have executed the government of those countries, otherwise to the Directors: as if all the evil had proceeded from some particular viciousness in their disposition, as if they had been sinners above all men, or as if no men would have done the wicked deed but they: whereas he who is the least acquainted with human nature will allow, that few, if any men, would have made any better use of their powers and opportunities; nay he will add, that every other government on earth, would act the very part that this Bengal government hath done, provided it held the same views and interests, together with the same powers and opportunities. And, if so, what can be more absurd, than the proposal to remedy the evils and abuses of this government, by sending out Supervisors, with the same or greater powers, and consequently possessing greater opportunities of promoting their own views and interests; which are exactly the same as these of the persons complained of; seeing that, as the same cause of evil which existed in the Governors, would have existed in the Supervisors, these similar causes must have operated similar effects.

Indeed we shall err widely, if we look for the original cause of evil in these Governors: for, on inspecting the preceding description of this Bengal government, we perceive, that their maladministration is itself but an effect, or consequence, naturally flowing from the total want of certain fundamental principles or powers; which, in every other government, serve to restrain the party governing from doing or permitting injury, and impel it to promote the good of the party governed: and as the want of these restraining and impelling powers hath unavoidably produced, the first tyranny, and the latter anarchy, it is plain, that all the evils and abuses in the government of Bengal have sprung from this deficiency. It farther appears,

from the same description, that the want of these restraining and impelling powers arises from two different causes; the first being the particular condition and constitution of the sovereign: and the second is there termed the distance of situation, betwixt the sovereign residence and the country governed; tho' the sequel will evince this latter to be rather a radical defect in the nature of that system, which the Directors have adopted for the government of this distant dominion. That these have been the two original causes of the tyranny and anarchy, and consequently of all the evils and abuses in this Bengal government, including these of the commercial despotism, is sufficiently evident. We shall therefore proceed to point out the means of removing these causes, as the only effectual method of remedying the evils. And as each of the two causes hath contributed its proper share of the evil, and each demands a distinct remedy, we shall consider them separately.

With regard to the condition and constitution of the Company, we have already mentioned the several circumstances that disqualify her for the office of a supreme sovereign; here therefore we shall only recapitulate, or collect them into one point of view. The first defect is, her impotence, or want of power to promote good government in her dominion: and this proceeds from her being, with respect to her deputed government, a meer fellow subject, totally void of supreme legislative and judicial powers; and consequently incapable of enforcing obedience; or of punishing disobedience: and this want of authority and power in the sovereign, we have shown to be a principal cause of despotism in the deputed government. A second defect in the constitution of the Company is her want of inclination, or rather of interest, to discharge the duty of a good sovereign; and this arises from the fluctuating and hourly mutable state of the proprietary, the temporary and short duration of her corporate existence, the still shorter tenor of this sovereignty, and the annual rotation of her executive government; for, in consequence of these several circumstances in her situation, her views are narrow, contracted, and rapacious; the sole aim of all her measures being to make the most of the present moment. The third defect is the mercantile capacity of this sovereign Company; and from this defect alone flow evils sufficient to ruin the interest of the country subjected to her government: for, in consequence of her mercantile capacity, her deputed government acts as a merchant; and, in consequence of her

sovereign capacity, all her mercantile servants assume the authority of sovereigns.

These are the principal defects in the being and constitution of this sovereign Company; and it is evident, that such defects in the sovereign, must have contributed largely towards the existence of abuse, in the deputed government. But these defects might have been, in a great measure, remedied, and their consequences prevented, by a simple act of parliament, past by the national government, at the time it thought proper to commit the charge of this important branch of national interest, to the care of the Company. This act might have been entitled, “An act for better enabling the East India Company to administer the political government, and to protect, maintain and defend certain states and countries in India, which have become subjected to the dominion of Britain, and which, for sundry weighty considerations, it hath been judged proper to commit to her charge.” And it might have been conceived in the following, or such like terms.

“Whereas it appears, that the want of a proper legislative authority over the ministers and servants, employed by the Company to execute the sovereign government of these subjected dominions, must be productive of many abuses, detrimental as well to the interest of the Company, as to the honour and interest of the British nation. Be it enacted by &c. that, from the time of passing this act, the Company shall possess the power of legislation, or making laws, for the government of this foreign dominion: and the laws thus enacted by the Company, shall be equally binding on all her ministers, servants, and subjects, in that dominion, as are the acts of parliament on the subjects of Britain. And being farther sensible of the many inconveniences, that must arise from the Company’s incapacity of punishing the offences committed by her ministers, and servants abroad, otherwise than by applying to courts of justice that are foreign to her government; where she cannot convict, through the difficulty of obtaining the evidence required by the forms of these courts; and where she is deterred from prosecuting, by the fear of divulging the secrets of her government; insomuch that, rather than apply to these courts, she must submit to the most audacious acts of disobedience, and maladministration; and considering that such incapacity in the Company must discourage all good government, and produce tyranny and anarchy in this dominion; be it enacted, that the Company shall have

authority to erect courts of justice, and appoint judges; with the like powers, as are vested in his majesty's judges, and courts of judicature, for trying and judging all suits and causes, or offences committed within the limits of this Indian dominion; and for punishing the same, either capitally, or by fine, imprisonment, and banishment, though to Europe only. And whereas it is probable, that some of the ministers or servants of the Company may, by various methods, elude the justice of her courts abroad, and escape to Europe; in order therefore to prevent such dangerous illusion of justice, it is enacted, that the Company's court of directors shall, on due information being made to them, have power at all times to call before them such escaping delinquents, and to try and punish them, for the offences they may have committed within the limits of this Indian dominion, in like manner as they could have been tried or punished by the Company's courts abroad. And because the liberty of appealing from the Company's courts of justice, to the judgment of any other courts, must be productive of the same inconveniences to the Company, as a trial of the same cause in the first instance would have been, and must therefore deter the Company from ever availing herself of the judicial powers granted by this act; it is enacted, that delinquents shall have no liberty of appealing from the Company's courts abroad, excepting to the Court of Directors at home, or to a general court of Proprietors; whose judgment in all such cases shall be final. And as the Court of Directors have, and may be, discouraged, from prosecuting or punishing the crimes of their rich servants, by the fear of danger to their own private interest, from a combination of the friends and abettors of such rich delinquents at a future annual election, be it enacted, that the 24 Directors, being such at the time of passing this act, shall continue in office, *durante vita*.

“And whereas it appears, that the liberty of daily selling, transferring, and alienating the shares in the Company's stock, of which this sovereign dominion forms a part, tends to infuse into the proprietors a spirit of rapacity, that may be productive of much damage to the several interests concerned; and hath many other very pernicious consequences; whilst it reflects disgrace on the dignity of all other sovereigns; be it enacted, that no proprietor in this Company's stock, of which the sovereignty forms a part, shall have power to send his share in the said sovereignty to market, like as it were a hog or bullock, and to sell, transfer, and alienate the same; but that the several proprietors of this stock and sovereignty, being such at the time

of passing this act, shall remain and continue proprietors, without the power of alienation, except in the cases that shall be hereafter specified.

“And whereas it hath been represented that the Company’s holding this sovereignty by lease, and for a short term, may not only alienate her care and prevent her from studying and promoting the lasting welfare of the country, but may induce her to pillage, plunder and waste it; be it enacted, that the Company shall hold the sovereignty of this dominion, *quamdiu se bene gesserit*; to the end, that she may consider and treat it, not as the property of another, but as her own inheritance.

“And whereas the Company exercises traffic in this dominion; and, in consequence thereof, her ministers do likewise traffic; and whereas the exercise of traffic is evidently repugnant to a due discharge of the duties of government, as being unavoidably productive of destructive monopolies and oppression; all which it is impossible to prevent, so long as the Company herself shall continue a merchant; be it enacted, that this Company’s commercial charter shall be dissolved; and she, and her ministers, shall be restrained from trading or trafficking, directly or indirectly, within the limits of this Indian dominion, under certain penalties to be mentioned in a new charter, which shall be granted to this Company, constituting her the United Company of English East India Sovereigns.”

These powers, grants, limitations, and restrictions, would have qualified the Company, so far as the nature of things could admit, for administering the political government; but, in her military capacity, as the sovereign protector, maintainer and defender of this Indian dominion, she hath been still less qualified, and would therefore have required still more extraordinary powers. These however we shall not specify, as apprehending, that what hath been already demanded will shock. The grant of supreme legislative and judicial powers to subjects, over their fellow subjects, must seem an absurd communication of that which is incommunicable: the prohibition of selling and transferring the shares of stock, would be termed a tyrannical restraint on private property: the perpetual grant of this sovereignty to the Company, must be deemed an unjust alienation of the Crown’s and Nation’s rights: and the dissolution of the Company’s commercial charter, would alter her very being and nature. In short, if we regard the proposed act simply, it will appear a collection of absurd inconsistencies, and ridiculous nonsense: but if we consider it conjunctly

with the cause or purpose for which it is required, then every absurdity vanishes from the act, and centers in the cause that renders it necessary. For we appeal to common sense, whether every circumstance, specified in this proposed act, is not indispensably necessary, to qualify the Company for the sovereign office of administering the political government of this Indian dominion: and, if that necessity is admitted, then doth the act become a rational and necessary consequence, of government's having previously committed that sovereign charge to the Company. Nay, we must take the liberty to add, that government, by committing such a charge to the Company, and at same time totally neglecting to capacitate her for supporting it, is in a great measure accessory to all the ruinous consequences that have ensued from her incapacity.

I am sensible it will be urged, that we proceed upon false premises; for that government never considered these countries as subjected to the dominion of Britain; that it never granted the sovereignty of them to the Company; nor supposed her to be the sovereign; but that it only acquiesced in her holding the Dewanny, on condition of her paying a part of the revenues to the nation; and, of consequence, that government never considered the inhabitants of those countries as subjects to the government of Britain. But this is a most flimsy evasion, like that of shutting our eyes to the sun, that we may deny it is day: government granted to the Company a right or permission to hold the Dewanny; which is explained to be, the power of collecting and appropriating the revenues of Bengal; and, in consideration of this grant, government demanded and received a share of these revenues; government therefore, in its legislative capacity, admits a knowledge, that the Company did possess the power of collecting, and also of applying the revenues of Bengal, *ad libitum*; and, amongst other purposes, to that of defraying the charges of the military, as well as the civil, government: and government well knows, that the power which defrays the charges of the military and civil government, must hold the absolute direction of both: and what constitutes sovereign power, but the absolute direction of the military and civil government, together with the disposal of the revenues? But, exclusive of the Dewanny contract, the Company hath applied, in every other characteristic of a sovereign, to government, in its legislative capacity: she hath brought a bill into parliament, for the grant of certain military powers and indulgences, for the better enabling her to defend, what she there modestly, though vaguely, terms her territorial acquisitions, (but

which, by referring to the Dewanny contract, is explained to include Bengal): and she hath applied for certain juridical powers and grants, for the better administration of the jurisdiction, not in her commercial factories, but over the whole country of Bengal: therefore government hath been informed, in its legislative capacity, by the Company herself, that she administered the military and civil government, and appropriated the revenues of Bengal; consequently that she was, in every sense and respect, the actual sovereign of that country.

Now government could not be ignorant that the Company is a subject to the national government of Britain; and that, as such, she could have neither right, power, nor force to subject this dominion, or afterwards to hold it in subjection, saving what she derived from the national government; consequently government, as it understood that these countries were subjected to the Company, must have known that they were subjected to the dominion of Britain. And as government did permit the Company to retain this dominion; and furnished her with a military force, knowing it to be for the purpose of maintaining dominion, it is plain, that the Company hath held this dominion, no otherwise than by the grant and support of government.

But if the Company be the sovereign of Bengal, the inhabitants must, *per* force, be her subjects; and if the Company holds this sovereignty as a subject to the government of Britain, by virtue of the grant or permission of that government, and by means of a force furnished by the same government, in what relation can this government regard the inhabitants of Bengal? In that of subjects surely; tho' the degree hath, by the deed of government, been somewhat implicated; like that of a child begot by the father upon his own daughter. And subjects they have been to the government of Britain, in every sense and meaning; they have yielded obedience to those subjects of this government whom it appointed to rule over them; and they have yielded the fruits, as well as the duties of obedience.

But the government of Britain, which hath thus by force subjected the inhabitants of Bengal to its dominion; which hath, for a series of years, held them in subjection; and hath, all along, exacted from them the tribute of subjection; hath withheld from them the protection due to subjects. For it hath scrupulously withdrawn itself from all regard or attention to their

government; and hath left it implicitly to the guidance of a few merchants; whom it knew to be perfectly unqualified for administering any sort of government: in consequence of which these wretched people have, for many years, been ruled, without law, justice, or government. Unhappy subjects, who are forced to obey a sovereign that refuses them protection, and leaves them exposed to all the horrors of tyranny and anarchy.

It will nevertheless be still insisted that government could not, without committing a number of irregularities and absurdities, endow the Company in the manner specified; as also that the Company, when thus endowed, would still have been altogether unequal to the charge of regularly administering a sovereign government. But surely government, if it would not or could not capacitate the Company to regularly govern those countries, ought not to have furnished her the means of oppressing, ravaging, pillaging, and ruining them; to the disgrace of humanity, and the indelible reproach of the British name. Government would have acted a part far more consistent with the rules of honour and humanity, if, instead of furnishing to the Company this military power, it had restrained her from availing herself of the advantage, gained by force and chance, over that mild, unwarlike, but industrious people; and obliged her to leave them to their own government.

But then the situation of affairs in those countries, where the nation and Company held such a valuable commercial interest, rendered it highly improper and dangerous to leave the native government to itself: moreover the nation and Company could not, in such case, have acquired the mighty wealth and other benefits that have been derived from the conquest, or assumed dominion, of those countries. Oh wealth, basely acquired, and foolishly applied! Was there then no medium, no middle channel, thro' which government might have steered the Nation and Company to this same wealth and benefits, clear of all these irregularities, incongruities, inhumanities, and reproaches? Yes surely; and one so obvious and conspicuous, that it is impossible to conceive how government could be so industrious as to shun or miss it. Had the national government taken upon itself the charge of superintending the government of those countries, as reason and the nature of things directed, then would it have furnished them a sovereign, naturally free from all the defects of the Company, and

completely endued with all the qualifications of power, ability, and inclination from interest, to protect and regularly govern them.

For it is plain, that the national government, possessing supreme legislative, and judicial power, must have been capable of enforcing obedience to the laws which it might have enacted for the good government of those countries; and of punishing disobedience, not only in the natives, but in the ministers whom it would have employed to execute that government; as these must have been its own subjects. And, on the other hand, the nation being an immutable body, and holding this sovereignty in her own right, and by perpetual tenor; her government must have been actuated, by the strong motive of self interest, to exert itself in promoting the real and lasting welfare of those countries. And as to the commercial despotism, it could never have existed under the national government.

It therefore follows, that the national government, being perfectly free from all the defects of the Company, would, by the simple, natural, and rational act of assuming the administration of government in those countries, have prevented or reformed all the several abuses or evils that have sprung from the defective constitution of the Company, as sovereign. But besides the mighty reform of abuses, that must have been immediately caused by thus changing the person of the sovereign; there is another advantage, which, though it cannot be said to spring directly from that change, yet would it have ensued as a natural consequence of the national government's taking upon itself this sovereign charge; and that is, the creation or institution of a new interest in that country; a sort of middle state, betwixt the native subjects and their foreign government.

The middle state here meant is the East India Company, (or which is the same, her servants in Bengal;) which, being now reduced to the condition of a subject, tho' still retaining all her commercial privileges and interests in that country, would have formed an intermediate link in the political chain, serving to connect the natives with their government, and government with the natives. For, in every one circumstance that respected the liberty of the subject, this middle state must have held precisely the same interest as the natives; and, in consequence, the same inclination to oppose all oppression of government: and, in every thing that respected the real interest, the power, or honour of the sovereign, the community of *Natale Solum* must have led it to support the measures of government. Therefore, this middle

state, holding a great weight in that dependent dominion, (not indeed from its numbers, but from the powerful support and influence of the Company, which would have been still very respectable in the sovereign country,) must have carried a mighty poise into the scale of liberty, in opposition to the despotism of government; whilst, at same time, it would have created no danger to the power of the sovereign. And a middle state of this nature must have been of inexpressible utility; facilitating, in many respects, the establishment of a regular political œconomy

in the government of these countries. For, in such case, the sovereign could, with propriety, efficacy, and safety, have conferred every reasonable privilege on the whole body of subjects in this foreign dominion: seeing that the exertion of these privileges might have been artfully confined to this middle state: and, as on the one hand, this finesse would not have, in any shape, withheld the benefit of these privileges from the natives; but, on the contrary, would have rendered them more effectually useful to the whole body of subjects, than if they had been committed either entirely or in common to the natives; because the Company's servants would, from interest, have had the same inclination as the natives, to exert these privileges for the common good; and they would have had infinitely greater power, from their superior activity, intrepidity, and firmness, as also from their superior opportunities of obtaining redress elsewhere against any infringement made by government: so, on the other hand, the authority of the sovereign could have incurred no risk from these privileges in the hands of Europeans; whereas there is great danger in attempting to confer on the natives a power to controul even the despotism of government. With this middle state the power of juries would have been effectual to the subject, and harmless to the sovereign: however, we shall have occasion to be more particular on this head in the sequel.

But if the national government could, by taking this sovereign charge upon itself, have prevented or reformed these many evils and abuses that have arisen from the defects of the Company; and could have likewise created other such advantages, facilitating the establishment of a regular government in those countries; what reason can be assigned for government's declining this charge, and devolving it on the Company? Government could not surely suppose that this important concern would be managed to greater national advantage by the Company, than by itself:

seeing that common sense might have foreseen, what experience hath since proved, that, under the management of the Company, the interest of Britain in those countries would, in the space of a very few years, be completely annihilated; that the countries themselves would either be completely ruined, or otherwise lost to enemies; and that the wealth, which was extorted from them by rapine and general havoc, being imported into Britain in the hands of a few indiscreet individuals, would create a torrent of profusion, extravagance, luxury, and prodigality, that would sweep all before it into the gulf of bankruptcy, perdition, and despair. Whereas, under the regular administration of national government, those countries might have been still preserved in a flourishing condition; and, in consequence, still capable of yielding to Britain a tribute little inferior to the surplus revenue which the Company received in the first year of the Dewanny: which tribute, arriving immediately at the public treasury of Britain, and being there applied to the diminution of taxes, and consequent reduction of the price of necessities and labour, would have proved a gentle universal shower, reviving our decayed and drooping manufactures and commerce.

But neither could government be induced to confer this sovereignty on the Company, by any motive of regard to the true interest of the proprietors: seeing it was palpably evident that this charge, being so unmeasurably superior to her powers of supporting it, must unavoidably crush her to ruin, and, along with her, the countries subjected to her rule; and, it is to be feared, even that community of which she forms a part. Whereas, if the national government had taken into its own hands, and carefully administered the government of those countries, whilst it continued the Company in possession of her commercial privileges, she would have continued to divide, in the first place, the six per cent. which her commerce, (unaided by revenue) afforded; even when burdened with the necessary expence of a small military force maintained for the guard of that commerce in those foreign countries, and which must have been equal to four per cent. on her capital: but this commercial military expence being rendered in a great measure unnecessary, by the immediate protection of national government, the saving thereof would have added two per cent. to her dividend: and the equivalent, which government would have paid for her fortresses, munition, &c. being added to her capital stock, would have encreased her dividend nearly one per cent. more; whilst her stock itself

would, at this day, have been really, and intrinsically worth 220 l. instead of its present real and intrinsic value.

It would be insulting the understanding of ministry, to suppose that it had been restrained from assuming this sovereign charge, by any delicacy of regard to the ideal right of the Company; derived from either conquests, as subjects; or from the sham grant of a man, who had not power to dispose of a single bega of land, nay, not of a cocoa-nut-tree in that country; and consequently whose grant of the sovereignty of Bengal could contribute nothing more to investiture or possession, than his grant of the crown of Britain could. Though if we should (for the sake of argument) suppose, that ministry had really admitted some such right, we must still esteem its acquiescence in that right a most absurd and wildly mistaken indulgence; seeing it evidently tended to the ruin of the party whom it meant to favour.

There hath been, however, one weighty argument against government's assuming this Indian charge, which is, the danger arising to national liberty from government's, (or, in other words, the crown or ministry's) acquiring such an accession of influence, as must arise from the possession of the many emoluments, places, posts, &c. annexed to this Indian charge: whereas liberty is completely secured from such danger, whilst the Company possesses it. And the certainty of this double maxim, viz. the danger from government's possessing this charge, and the security whilst it is in the hands of the Company, is as generally established as almost any one human principle: for, being violently enforced by those whose personal views lead them to oppose administration, and at same time not simply allowed, but even inculcated by ministry itself, it hath been readily credited by those who, their personal interest not being so deeply concerned, were less curious to investigate the truth.

It may be deemed presumptuous in an individual, to question the orthodoxy of a maxim so powerfully enforced by one party, readily allowed by the other, and almost universally credited: tho' the extraordinary circumstance, of two violent rival parties concurring so exactly on a point, where their personal interest seems to be so materially and so oppositely engaged, would lead a bystander to suppose, that either one of the two parties must be mistaken; or otherwise, that one or both must misrepresent: at any rate, that uncommon instance of candour, in ministry's preaching up a doctrine so repugnant to that which it pretends to be its own personal interest, would

induce such bystander to suspect its sincerity. However, as a right understanding of this point may considerably import the public, at this critical juncture, I shall venture disclosing my sentiments, at the risk of censure for prolixity, as well as impertinence.

With regard to the first part of the maxim, I conceive that the danger to liberty, from government's holding this charge in its own hands, is supposed to arise from the influence which the minister would acquire, over the two subject branches of legislature, (those bulwarks of liberty) by means of the many emoluments, places, posts, &c. annexed to the possession of that charge. But before we admit that the ministers holding this charge would be creative of that dangerous influence, we ought to be satisfied that he doth not already possess it, by other means; for, if he doth already possess such influence by other means, it is plain that the Indian charge cannot confer it; nor will it avail to shut one door, whilst there are others open to admit him. And that the minister hath long been in full and plenary possession of such influence, we have ever heard asserted by these very men who so loudly enforce the danger of his acquiring it, by means of this Indian charge: nay, we have much better authority than their contradictory assertions, (even that of fact and daily experience,) for believing that the minister hath and doth possess posts and places, and that, on any emergency, he hath in his power other means equally effectual, towards creating and holding such influence, in a degree as plenary and complete as his own heart can desire. And, if the minister doth already possess such influence by other means, it is plain, that the Indian charge cannot confer it; nor will it avail to shut one door, whilst there are others open to admit him. And that the minister hath been long in full and plenary possession of such influence, we have ever heard asserted by those very men, who so loudly enforce the danger of his acquiring it, by means of this Indian charge: nay, we have much better authority than their contradictory assertions, (even that of fact and daily experience,) for believing that the minister hath and doth possess posts and places, and that on any emergency he hath in his power other means equally effectual, towards creating and holding such influence, in a degree as plenary and complete as his own heart can desire. And, if the minister doth already possess an influence so fully sufficient, it must be allowed that, in so much as respects parliamentary influence, this Indian charge would be a thing superfluous and useless to him; like meat to a man that hath already filled his belly; the absence of it can withhold nothing that he wants, and the

acquisition cannot confer more than he already possesses. I may venture to add, that we certainly hold our liberty by some latent security, more powerful than that of parliament itself, which neither the minister's influence over parliament, nor posts and places, will ever induce him to attack, or enable him to subdue; for that, otherwise, we should have been divested of our privileges and liberty long ago. And, upon considering these several circumstances, I conclude, that if this Indian charge was in the hands of government to-morrow, it would neither enable, nor induce the minister, to attempt a jot more against our liberty, than he hath done, can do, and will do, without it. However, by way of reinforcing my argument, I shall add that, if the plan which I mean to propose should be carried into execution, it would leave but few of these emoluments, &c. to the immediate disposal of the minister; and, possibly, this declaration may but little recommend it to his favour.

But still, if we were to admit a real danger to liberty from the minister's possessing these emoluments, &c. it remains to be proved that liberty hath been, is, and will be secured from such danger, by the Company's holding that Indian charge. And, when the nature of this security comes to be examined, I apprehend it will be found more difficult to prove this latter part of the maxim, than the former. For it is notorious that, ever until the late distraction in the Company's affairs, the arbitrary application of these emoluments, posts, &c. was vested in the Directors; and indeed the entire powers and interests of the Company; insomuch that the Directors might, with propriety, be termed the Company. So that the whole security of national liberty, and, of course, the sole obstruction to the minister's dangerous views, depended on the integrity and independent spirit of 24 Directors; of whom, again, one or two generally leads all the rest. Consequently, to come at the fingering of these dangerous emoluments, &c. the minister had only to subvert the integrity, or subdue the independance, of these Directors. And, to effect this, a minister possessed more than one infallible recipe. By artfully joining the mighty influence which he held in the Company's stock thro' his numerous dependants, to one or other of two parties contending violently for the direction, he could reduce both to a perfect dependance on himself: by the same means he could hold them in subjection: but still more, by the awe of wresting from them the sweet management of this Indian sovereignty, which they were sensible he could do by a word. And thus he could work upon their fears. But inclination

would naturally and powerfully lead the Directors to throw themselves into the arms of a minister; not so much for his immediate assistance; tho' even that might be of great use, for rendering matters easy with the proprietors, as well as parliament and the nation; but because, on these terms, they secured, in him, an omnipotent supporter and all powerful advocate, against the day of distress, which they well knew must come, and that soon: whereas, otherwise, they must lay their account with finding him a severe judge, and bitter prosecutor.

By these several operations on the hopes and fears of the Directors, it was extremely easy for a minister to render them as pliant as a glove; as obedient as a spaniel, to fetch and carry at bidding. And the Directors being once reduced to this state of dependance, it is evident, that the minister must possess a full and arbitrary power over all the emoluments, posts, places, &c. appertaining to this Indian charge. But the disposal of the present emoluments, &c. was a trivial matter, compared with other advantages, which this Indian business, whilst in the hands of the Company, presented to an artful and enterprising minister. For, under the plausible and indeed undeniable pretext of qualifying the Company for administering this sovereign charge, he might have drawn from the legislature certain military as well as political powers; which, being gradually augmented as occasion offered, might have at last established a sort of power, in this government, distinct from and independent of the legislature: the exertion of which power, being confided to the Directors, would in fact have rested with the minister. Here indeed was a real danger to liberty; provided it had been possible to hold up this Indian business, in the hands of the Company, for any length of time; for, notwithstanding I consider national liberty as inexpugnable to the open assaults of a minister, yet, from such a secret convenient and commanding post as this mentioned, he might have made frequent sly and successful incursions on the confines of liberty; which would have greatly straitened her quarters, and wasted her strength.

On the other hand, if that Indian charge had been vested in the national government, liberty must have been perfectly secured from this last mentioned danger; for, in such case, there could have been no pretext for demanding these extraordinary distinct powers; and, consequently, no opportunity of establishing that truly dangerous *imperium in imperio*. And even in the application of the ordinary powers, emoluments, &c. a minister

must have been subjected to many troublesome checks, and restraints. His Majesty, who can have no views distinct from the general interest of his people, must have held a principal voice in every measure; as likewise must some others his counsellors. Parliament too must have proved an inconvenient restraint on a minister; particularly in the article of estimates and accounts of revenue, which must have been submitted to its inspection; and notwithstanding the certainty of carrying points by a majority of voices, yet, as there will ever be some refractory members, these might have carried tales to the public; which, provided this charge had been in the hands of national government, would have judged itself interested in the affair; and would therefore have taken the liberty to criticise his measures, or censure his misconduct. Whereas, this business being secured, as private property, in the hands of the Company, king, parliament, and nation were all excluded from participation: the proprietors alone had a right to examine measures or accounts; and, the majority of them upon all questions being mercenary retainers to ministry and the direction, they must have ever been a mere *servile pecus*. So that the business might have been snugly confined to three or four ministerial associates, with their faithful dependants in Leadenhall Street; whilst the minister needed never appear in the affair; free from care, charge, or trouble; and irresponsible for either measures, or consequences; he might enjoy all the sweets, without the least alloy of bitter.

Sure I am if I had been minister, and minded to make a job of this Indian business, I would certainly have exerted myself most sedulously to preserve it in the hands of the Company. And, to divert the nation from ever turning her eye towards it, I would have strenuously inculcated the rights of the Company, national faith, the impossibility of conducting this business otherwise than through the Company; and, above all things, I would, by my emissaries, have alarmed the public, with fears of danger to their liberty, should this business ever come into the hands of government; whilst, by the same canal, I would have trumpeted forth my own candour, disinterestedness as a minister, indifference to power, and delicate regard to national liberty and private property, in thus disclaiming an object so replete with ministerial advantages, which was within my power. And thus would I have continued the game, until it was up: and then I would have directed the enquiries, which decency and regard to appearances extorted from me, in such a manner as to suppress, instead of investigating: though, at same time,

I would have boldly expressed my indignation at the Company's misconduct; and loudly denounced vengeance against the individuals that had shared in the plunder; not a soul that was guilty should escape. And, to wind up the whole affair dextrously, I would have tasked my own powers, and those of my myrmidons, to represent all these Indian acquisitions as a transitory, casual, and accidental piece of business; which was altogether out of our tract; and which, if the nation had ever engaged in maintaining them, would have ruined and exhausted her: and so the nation was to thank me, for withholding her from ruin.

In this manner, I say, would I, who am a reptile, have acted, had I been minister, and minded to make a job of this business: but I am far from intimating or insinuating that our ministers, who are men of high birth and strict honour, could be capable of admitting even a thought of taking such base advantages. All that I have said is only meant to show, that a minister, if he had the inclination, possessed an infinitely fairer opportunity, of converting this business to sinister purposes, whilst it was in the hands of the Company; than he possibly could have had, from the same business, under the conduct of national government. And, from thence, I would infer that, had this business been in the hands of government, our liberty, nay and our property too, would have been secured from many dangers, to which they have been exposed, whilst this business hath been in the hands of the Company.

I cannot then conceive what other objections could be started against government's taking upon itself the charge of this Indian dominion: unless it be the old trite arguments of timid sluggish indolence, want of enterprize, &c. That, the distance of situation rendering it impossible for Britain to properly maintain and govern this dominion, it would become an object of no true value or importance, but rather a heavy load exhausting her strength. But it is now more than time for the nation to recal her faith from men whom she hath sufficient ground to suspect of deceit; and, rousing her senses, to take the liberty of trying these matters by the standard of her own reason; which we shall endeavour to aid by the following hints.

To properly demonstrate the true value and importance of this Indian dominion to Britain, would demand a volume; we have, in the first part, presented a slight sketch of it; here therefore we shall offer only one or two remarks respecting its importance to our finances; and though we do not

offer these remarks as the result of exact calculation, yet will they serve to throw a light on this subject. Ever since the last war Britain hath paid annually to foreign creditors, in interest, about 1,500,000 l. and this is paid, not in paper, but all in hard money; or, otherwise, in what is equivalent, the stoppage of so much hard money as is reckoned to come into Britain by the balance of her trade. On the other hand, the net specie balance of trade with all the world, (exclusive of that part which strictly and properly may be termed the produce of Indian dominion,) after deducting the imperceptible and enormous drain of specie made by smuggling, doth not at this day perhaps amount to 800,000 l. The difference then betwixt her numerical specie disbursement and receipt in balance of trade, must needs have been made good from some other fund than the circulating stock of specie, otherwise circulation must in that number of years have totally ceased. And this fund we need not mention to have been the dominion in India. Ever since 1757, the private fortunes acquired there in consequence of dominion or conquest, having been remitted either in bills on foreign Indian companies, or in diamonds, have created an annual influx of specie, (or what is equivalent,) to the amount of at least 700,000 l.^[1] The Company too received since that period, and previous to the Dewanny, though by virtue of dominion or conquest, sundry large sums of money; which she invested in merchandize; and, thereby, saved to Britain so much specie as she would, otherwise, have transmitted for the purchase of such merchandize; and it doth not require demonstration to prove, that all such saving is, in every respect, the same as the influx of an equal sum. And ever from 1765, till some time in 1770, the Company paid for all her cargoes, not only in India but in China, with the surplus revenue of Bengal: and of course this surplus revenue hath, for that space, saved, (which is the same as gained) annually to Britain, the whole sums which the Company used to transmit for the purchase of her cargoes in India and China; and which, on an average, may be reckoned 500,000 l. *per annum*: but these cargoes were, from 1765, encreased to an enormous degree; and if we add only 200,000 l. for such encrease, we shall find that the surplus revenue of Bengal hath, by the return of trade, created an annual influx to Britain of at least 700,000 l. in specie: and this, added to the private fortunes, makes 1,400,000 l. received yearly by Britain, from Indian dominion.

But, for these two years past, the ruinous situation of those countries, and the consequent deficiency of revenue, hath obliged the Company to either

transmit money from Europe, or otherwise to borrow money abroad, on bill or bond, for the purchase of all her cargoes in India as well as China: and the Company, by thus borrowing, for the purchase of cargoes, and even the expence of her government, hath absorbed the private fortunes, which, till then, had been transmitted to Britain, by bills on foreign companies. We must therefore perceive, without descending to tedious investigation, that the ruined state of those countries, having cut off surplus revenue, hath, for these two years past, diminished the annual influx to Britain from Indian dominion, at least one half, or 700,000 l. And this diminution of influx, whilst our drain continues the same, we already begin to feel in our circulation: though this felt effect is not yet traced up to its cause. Of what mighty importance then must this Indian dominion have been, to the circulation of Britain: when this circulation feels severely, from only two years partial deprivation of the benefit formerly derived from that dominion? And what effect must a total deprivation of that benefit operate, in a few years, on this circulation; whilst, we are continuing to pay to our foreign creditors about 1,500,000 l. *per annum* in numerical specie; exclusive of other less noted drains, which, it is most probable mount it up much higher? And yet it is evident, that Britain must, unavoidably, be deprived of this whole benefit, so soon as she shall lose her dominion in India; whether that loss shall be caused by enemies, or by the ruin of the countries subjected. Nay, by losing the dominion of Bengal singly, she must not only incur a deprivation of almost the whole dominion benefit; but she must likewise lose by far the most valuable part of that commerce, which was carried on by the Company with those countries, previous to dominion. For the commerce with Bengal, alone, is of much greater value, than that with all the rest of India: and, as to the trade with China, it is the most pernicious and losing trade to the nation; however convenient it may be to government.

And if we shall then advert to the benefit and support which the finances of Britain have received from this Indian dominion, for so many years past, though under the most preposterous management; but, still more, if we shall advert to the nature and degree of benefit that, under proper management, might have been derived *in perpetuum* from this Indian dominion, in not only the article of finance, but in other weighty respects: and, if we shall, yet farther, look forward to the dismal consequences that must unavoidably ensue to Britain in these several respects, from a deprivation of this Indian

dominion and its benefits; can we tamely surrender our reason to the *ipse dixit* of men who are hardy enough to tell us, that Indian dominion is of no value nor utility to Britain.

Nor do these men less abuse our understanding, by holding forth the difficulty of maintaining and defending this dominion: seeing that, of all nations in the world, Britain is, by a variety of circumstances, the best qualified to maintain and defend maritime or commercial dominion in India. For, as she exceeds all the world in naval force, she is, through that circumstance alone, the most capable of defending such dominion, against the assault of European enemies: and had Britain availed herself of evident advantages, had she established her naval and land defence upon the plan that shall be explained, British dominion in India might, at this day, have been secured from even the attempt of European rivals: they might have admired and envied, but they would not have dared to attack. And these European rivals are the only dangerous enemies to British dominion in India: for as to the neighbouring native powers, they would, from fear as well as inclination, have been amicable to Britain; provided her government in those countries had acted with common honesty, and common decorum, or prudence; and not as common robbers. And, as to the unhappy native subjects themselves, their loyalty hath been sufficiently proved, by so many years patient submission to the most intolerable of all possible governments. Wherein then consists the difficulty of maintaining and defending British dominion in India?

And with regard to the so much talked of expence or drain of native strength, we may surely, with good reason, say that this objection militated much stronger against maintaining that dominion under the Company, than under national government: tho' the nature and extent of even that drain under the Company, is most grossly misrepresented. For I am well informed that the Company's annual recruit, since the time she completed her dominion force, hath never exceeded 1200 men; and I am afraid it hath in general fallen short of 1000; notwithstanding she laboured under many disadvantages, from which national government would be exempted: such as being obliged to put up with very indifferent and unhealthy recruits, for want of better; too little attention paid to the manner of transporting them; and still less to their health and manner of living in the country: whilst her governors expended numbers of them on unnecessary predatory wars. And

even this recruit we are not to reckon a drain of real strength from Britain: seeing that, the Company's recruits have been mostly fellows of the most desperate circumstances, who had no means of subsisting at home; and who therefore would, if the Company had not taken them off, have been taken off by the gallows, or otherwise would have emigrated to America or some other country, in search of bread; and would thus have been equally lost to Britain. So that, upon rationally considering this matter, we shall find that, for the maintenance of dominion in India, the Company hath not drained this country, of 100 men annually, that could, in any sense, be termed useful, or a real strength to it. But, setting aside the precedent of the Company, it is certain that, to maintain and defend the mighty dominion of Bengal, demands an European force very little superior in number to the garrison of that barren fortress Gibraltar: and to maintain and defend the whole territorial possessions, together with the commerce of Britain in India, requires a force very little exceeding the aforesaid garrison with that of its filler fortress in Minorca. And the annual recruit, necessary to keep up this force, after allowing largely for climate, and every other circumstance, would, on a complete plan of defence, not exceed 900 or at most 1000 men: and, of this recruit, at least 200, would be wanted annually to maintain commerce, if there was no dominion. Nay, if this is judged too great a drain for Britain, one fourth part of that number may be reduced, by recruiting that proportion of foreign protestants: such being easily procured; and, in such a low proportion, they can in no respect be dangerous. And can Britain, regard 6 or 700 men annually as too great a drain, for the maintenance of that important dominion and commerce, which is as one of the capital limbs of her body; and at same time bestow a nearly equal share of her strength on maintaining these two barren, and I had almost said useless, fortresses; the pecuniary charge of which she pays out of her proper finance, never to return; whilst Indian dominion defrays its own charge.

The only remaining objection then to Indian dominion is, the difficulty of properly governing it. But this difficulty doth not arise, like that in America, from the indomitably obstinate spirit of the subjects; on the contrary, it arises from their over passive or submissive disposition, and incapacity of resisting the power of government: and this, instead of being an objection, is the most valuable qualification of a dependent dominion. To remove this difficulty demands no exterior aids, no exertion of powers or force; it depends entirely on the will of the sovereign; and a very little art, a very

little care, with a little honesty, would serve to completely remedy it; as we doubt not to evince.

In fine, Bengal, being one of the richest commercial countries is, to Britain as a commercial nation, the noblest and most truly valuable acquisition that providence could possibly bestow on her: by the mild disposition of its inhabitants it is the most facilely governed and maintained; and, by the nature of its situation, it is the most defensible foreign dominion on this globe; particularly to Britain which excels in naval force. And one may almost venture to say that providence, by throwing Bengal into the arms of Britain, seems to have intended that this, the richest commercial state in Asia, which, through the effeminacy of its inhabitants, is incapable of maintaining its own independance, should be subjected to Britain, as being the fittest, through similarity of commercial disposition, interest, and modes, to properly govern it; and, through her superiority in naval force, the best qualified to defend and protect it from all enemies.

In what light then must posterity regard the policy of Britain, during the third quarter of the eighteenth century: when it shall find her, in the East, slighting and giving up that glorious field, which annually yielded a golden crop, to be rutted up and trodden down by hogs and viler beasts: whilst, in the West, she was tugging with all her might, exerting her utmost study, care and attention, much strength, and more money, on cultivating the sea sands; straining to subdue nature; and forcing the horse to drink in spite of inclination? Will it not be said, that she would have acted a far wiser part, if she had left nature and time to slowly operate in America, the effects which they will unavoidably produce, in spite of all her efforts; and had converted her care and attention, to properly govern, and maintain, that noble, rich, and grateful dependent dominion in India; which, upon such terms, would have poured, into her publick treasury, resources, that would have served to alleviate her burden of taxes; and, consequently, to reduce the price of necessaries, of labour, and of manufactures; which, again, would have preserved her commerce, not only with America, but with other countries; and would at same time have preserved to her thousands of industrious and useful subjects, who, through want of employment, were forced to emigrate from her to America. And, by the same care and attention to the government and revenue of that Indian dominion, she would have prevented the inundation of eastern profusion and extravagance; which chiefly

contributed to convert this formerly graniferous island, into a pasture for horses of parade and stately pride; insomuch that, instead of supplying her neighbours as formerly, with some hundred thousand pounds worth of grain annually, she could not feed the greatly reduced number of her own inhabitants; nor furnish the means of living to the industrious agricultor, and peasant; who, in search of livelihood, fled from her to America; thereby debilitating her own best source of strength, and prematurely accelerating the manhood of those otherwise infant colonies.

Nevertheless there still remains a possibility of retrieving this error in policy; or at least of preventing a farther encrease of the evils that have arisen from it; provided that, in the first place, this Indian dominion shall still be in our possession: and, in the second place, that national government shall, by taking upon itself the charge of administering the government thereof, remedy that first and radical cause of evil and abuse which hath existed under the Company's government: and shall, at same time, with honest and sincere intention, spirit and activity, apply a proper remedy to that which hath been assigned as the second cause of evil, and the nature of which remedy shall be explained in the sequel. For, upon such terms, there is no doubt that a regular system of government may be established in that dependent dominion; under which it may be restored to its pristine prosperity, nay, it may be elevated to a state still more flourishing than it ever knew; and, in consequence, to a capacity of yielding a still superior degree of benefit to Britain; and in a manner widely different, and truly salutary to her.

But I must again repeat, that it is vain to expect this reform of evils from the management of the Company; loaded as she is with so many natural defects, which it is out of the power of art to remedy, otherwise than by conferring upon her the sovereign government of Britain, along with that of this dependent dominion. For the execution of these two sovereign governments is, by the nature of things, inseparable: it being morally impossible, that any power can execute the sovereign government of those Indian countries, as a dominion dependent upon Britain, unless that power shall possess the sovereign execution of government in Britain.

However, it would be still more vain to look for any good from that extravagant fancy of joining the Company, with government, in this sovereign charge. What quota of powers, proper to her and wanting to

government, can the Company contribute, to render her a necessary or useful associate with government, in this sovereign charge? I doubt not that the proposer's intentions were good and honest: but his scheme would be so far from promoting his or any one good purpose, that it would produce the very opposite effects. For, instead of checking and contrasting, it would serve, in the first place, to furnish, in the Directors and their governors, a convenient cloke of excuse to ministry and its governors, with the nation; whilst ministry and its governors would serve the Directors and their governors a like good turn with the proprietors: they would mutually vouch for and screen each other; neither would be responsible, and neither would act; and thus, between stools, &c. in the second place, commercial despotism which, by separating the Company from the powers of government and the consequent jealousy of privilege, must have been completely suppressed, would, under this double-headed monster, flourish with redoubled vigour: the national governors would, by their connection with the Company's, become merchants as well as tyrants; and the Company's governors would, by their power in the government, continue tyrants as well as merchants: and thus the candle would burn at both ends. In the third place, the Company which, by being excluded from the powers of government, would have contributed so essentially in the nature of a middle state to the establishment of a regular political system in those countries, must, by being joined in the execution of government, entirely lose that virtue: instead of supporting liberty, she would join in promoting tyranny; and would still continue a ruinous pest to those countries. Indeed that strange partnership of Nation and Co. in this sovereignty business, is a cure infinitely worse than the disease.

In short, there is no alternative: if Britain means to preserve the possession of that mighty benefit derived from dominion and commerce in India; if she means to prevent the absolute ruin of the Company, and her creditors; if she hath any regard to the loud cry of oppression sent forth to her for a series of years, by her numerous wretched subjects in those countries; and means to save them from final destruction, she must furnish their government with a sovereign, or head, properly qualified to administer it: for this is the foundation, as well as the crowning of all good government; it is the center upon which the machine revolves, from which every line issues, and in which every line terminates; it is *sine qua non*, for without it no regular

government can exist. And what proper sovereign can Britain furnish to that dependent dominion, unless it be her own sovereign government?

We have shown that the nation and her supreme government are perfectly equal to the charge: to them there is not the smallest difficulty in supporting it. Neither is there the smallest difficulty to her executive government or ministry, provided it shall possess an ordinary share of spirit, activity, or enterprize; and shall proceed with sincere and upright intention. For, a regular form of government being once established abroad, and a properly digested office or department formed at home, the business would go on with great smoothness and facility to ministry.

Nevertheless, as I have assumed the liberty of prescribing in this important and almost desperate case, I am sorry, that a sincere regard to the welfare of the patient should compel me to add, (by way of concluding on this head,) that, unless ministry shall act upon a principle, and with a spirit, extremely different from that which it hath hitherto discovered in this business, it would be much more adviseable to continue the charge in the hands of the Company: for it can be but ruined under her. However, in strong hopes of a melioration in these respects, which depends altogether on the will of government, I shall proceed to disclose that plan, which, in the hands of a properly qualified sovereign, would, I doubt not, serve to establish a regular system of government in India.

A PLAN, FOR ESTABLISHING A REGULAR SYSTEM OF POLITICAL GOVERNMENT IN INDIA.

We have before observed, that the second cause why these restraining and impelling powers, which alone can prevent tyranny and anarchy, have been altogether wanting in the Company's system of government, appears to be the distance of situation, betwixt the sovereign residence and the country governed. And we shall here add that, if national government should adopt the same system, this distance would operate, under it, effects the same in nature as these under the Company; and nothing but the difference in other circumstances, betwixt the national government and Company, could prevent these effects from being likewise equal in degree. For it is evident that, if the executive government of the nation should, as the Directors have done, preserve to itself the charge and power of immediately superintending and controuling the execution of government in that Indian dominion, the distance of situation would create to that government an equal impossibility of advising and directing measures, of enforcing the execution or observance of orders, and of preventing or restraining abuse: consequently, in the immediate execution of all measures, the national governors would possess the same unlimited power, as the Company's governors have done. And the only advantage to that Indian government, from national governments assuming from the Company the charge of administering it, would arise from the following circumstances. First, the superior retrospective or *ex post facto* authority of national government, enabling it to judge and punish the maladministration, or disobedience of its ministers. Second, The superior inclination or disposition of national government (arising from its perpetual interest in the property) to exert itself in promoting proper measures. Third, The suppression of commercial despotism. And fourth, The existence of the Company as a middle state betwixt the natives and their foreign government. All which innovations, arising from national government's taking upon itself the administration of

this Indian government, though they are indispensably necessary and highly conducive to the establishment of a regular political system, yet do we perceive that they, singly and unsupported, cannot suffice to create that due proportion of restraint on the power, or of impulse on the will of the deputed executive government, which is absolutely necessary to the perfect suppression of tyranny, anarchy, and abuse. Nor is it possible to complete this restraint and impulse, to that sufficing degree, unless by a proper exertion of the sovereign's own supreme influence.

But we find that, upon the Company's system, the distance of situation renders the influence of the sovereign altogether impotent to this effect: and if we should take it for granted that her system hath been just or complete, then must we conclude, that this sovereign impotence is a consequence naturally and unavoidably arising from the distance; and, therefore, above the remedy of art. But, if we consult our own reason, we shall perceive that the Company's impotence, in that particular respect, proceeded from a radical defect or error in her system; which might have been remedied by art. For, it is evident, that the distance of situation was in every circumstance similarly and equally obstructive to the Company's immediately or personally executing the government of that Indian dominion, as it was to her immediately restraining or enforcing the manner of execution: and yet we find that the Directors could discover a remedy for the first of these obstructions, by the succedaneum of appointing a deputed executive government. And, as the second sprung from the same cause, and was exactly similar in its nature, common sense must surely have instructed her, that it was to be removed by a similar remedy; it being certain that, if the Directors had thought proper to institute in India a deputation properly qualified to controul their executive deputation, the measures of those Indian governments might have been enforced or retrained by the sovereign residing in Europe, as effectually as they have been executed by the same sovereign: that is to say, as effectually, as the defective constitution of the Company, (which equally disqualified her for controuling as for executing,) could admit.

But it could not be ignorance, or want of common sense, that prevented the Directors from instituting a controuling deputation of this nature: seeing they had before them the precedent of these other European nations, who hold any possessions in India: all of whom have provided something of this

kind: for instance, the Dutch government at Batavia. Sound policy quickly pointed out to the Dutch, the absurdity of committing the charge of their dispersed concerns in India, to a multiplicity of distinct heads, all acting under no other constraint, or restraint, than that of the Company's Directors residing in Europe. Therefore, so soon as the Dutch Company began to extend her possessions in India, she instituted one supreme government at Batavia, with full powers, and authority, to direct and controul the executive government of all her other settlements. And this government acts in India as an intermediate power, betwixt the Company residing in Europe, and her various possessions in that distant country; and as the perpetual residentiary supervisor of all her interests there. The Directors communicate all their purposes immediately to it; and it disperses orders and instructions to all the subordinate governments; which again transmit to it a regular account of their situation, wants, or transactions. All governors, chiefs, &c. are immediately responsible to it: all appointments to, and removals from, office in the subordinates, are made immediately by it: and all complaints or appeals, against the misconduct or injustice of these governors, are immediately addressed to it. In fine, it may be termed the center of the Dutch government in India. And though this government can in no shape be termed the complete model of a deputation, fit to controul or enforce the execution of sovereign government, in various territorial dominions; yet, to this institution, defective as it is, the Dutch owe it, that the government of their numerous subordinate possessions in India hath been conducted, for about two hundred years, clear of any enormous abuse.

But if the Dutch and other European nations, which hold little other concern in India than a few settlements established there for the purpose of commerce, found it necessary, for the regular management of these commercial concerns, to institute a sort of intermediate supreme power, as a local check on the rest of their settlements: how much more incumbent was it on the English Company, to constitute an immediate directing and controuling power, over the conduct of her deputies, who were entrusted with the charge of executing the sovereign government, of sundry mighty states; a charge of such superior intricacy, weight, importance, and delicacy; and so very liable to be abused.

What may have been the motive of the Directors for thus wilfully omitting an institution so evidently useful and necessary, I shall not pretend to

determine. Possibly they might apprehend that if, upon their acquiring this mighty sovereign dominion, they should alter that which had been all along their commercial system, such alteration might induce the nation to enquire into the cause of it, and so discover the nature of their dominion, which they have ever carefully hid from the public. Though, it is more probable, they might perceive, that the institution of such an intermediate power would greatly interfere with their own personal influence, power, and emoluments; seeing it must have possessed the immediate disposal of places and posts, as well as a considerable share in the direction of affairs: and, in order to prevent this, they preserved to themselves the power, of immediately superintending, and directing, the execution of government in those Indian dominions.

But whatever the motive of the Directors may have been, it is certain, that the want of a deputed controuling power in India, hath been a radical and grievous defect in their system: which hath produced a number of those evils that have been falsely ascribed to the distance of situation. And though we are far from alledging, that it was possible for the Company to establish in those countries a government in any degree regular, seeing that the numerous natural defects in her constitution, unavoidably producing many destructive abuses, must have ever proved an insuperable obstacle to that; yet do we affirm that, the institution of a duly qualified intermediate controuling power, would have totally prevented some, and would have greatly diminished most, of these enormous abuses which, upon the system of the Directors, have served to ruin those countries.

Now we have seen that the national government would, by taking upon itself the charge of administring that Indian government, remedy or suppress all the abuses that have sprung from the defective constitution of the Company, (besides creating other circumstances of high utility, that could not exist under the Company's government.) And as the distance of situation, preventing the sovereign from immediately exerting his supreme influence over the deputed executive government, is the only remaining cause of evil or abuse; it is plain that, if it is possible to construct in India, a deputed power, upon such principles, as that it shall effectually and completely supply the place of the sovereign, in immediately directing, enforcing, and controuling the measures of the deputed executive government, then must the only obstruction to the establishment of a

regular political system, be remedied and removed. Consequently the grand *desideratum*, the only thing that is wanting, to enable the national government of Britain to regularly administer the government of those Indian dominions, is the institution of a deputed controuling power in India, properly qualified to fulfil the purposes that have been here specified.

And that it is possible, to constitute an intermediate power in India, that shall effectually and faithfully direct, enforce, and controul the measures of the deputed executive government in those Indian dominions, I doubt not to evince: though, at same time, I am fully sensible of the many real difficulties, arising from nature and circumstance, to obstruct it; as likewise of the many artificial difficulties proceeding from the endeavours of those who have an interest to obstruct such a measure; and who have influence to enforce their objections, however futile, on the understanding of others.

But before we proceed to describe the plan upon which we mean to construct this controuling deputation, it will be necessary to explain the extent of its charge, or number of the government's composing that dominion which it is meant to controul. For tho', in our description of the Company's government in India, we confined our account to that of Bengal alone, as being the most important and best known part of her dominion; yet doth the Company possess, besides Bengal, certain other territorial governments, of no small value and importance, in respect of either revenue or commerce. All which governments being formed upon the same system as that of Bengal, do not less demand reform, supervision, and controul.

For, in the first place, the government of Madrass possesses a very considerable and valuable territorial dominion, avowedly in the name and right of the Company. This same government doth likewise, in every thing beside the name, possess the absolute sovereignty of that rich commercial province of Arcot, or the Carnatic, in which it is situated: for, notwithstanding it tolerates a nominal Nabob, whose name it uses in most acts of government; and who, consequently, for the Company's convenience, possesses the shadow of sovereignty; yet, as the government of Madrass holds the charge of defending the country, and maintains the military force requisite thereto, it is the actual sovereign: seeing that, in all Indian or Asiatic governments, he who holds the sword must be the absolute lord and master. And, notwithstanding all the Company's parade of appearances, this Nabob of Arcot is, in respect of sovereign power, as much

a pageant as he of Bengal: a mere screen or blind, placed before the Company's sovereignty.

Bombay is likewise embarked in dominion, since it seized on the rich commercial city of Surat, with its district, &c. Though sound policy must direct Britain to reprobate all territorial dominion on that side of the peninsula; as causing a dangerous division and weakening of her force and defence.

But the same policy will instruct Britain to regard dominion on the east side of that peninsula in an opposite light; because, on that side lay all the truly valuable dominions which she already possesses.

To fully explain what is the true interest of Britain, respecting territorial dominion in India, would be, here, foreign and tedious; and, to slightly touch on that subject, might afford ground for censure and criticism: we shall only observe, in the general, that Britain ought to value only such dominion in India as is maritime: because, in the first place, these are ever trading and manufacturing countries; and, as such, are highly useful to her proper commerce; they are likewise capacitated, by their own active foreign trade, to richly reimburse her for her expence of native strength in defending them, as well as for her trouble in governing them: and, in the second place, being accessible to her naval force, they are easily maintained and defended by her. Therefore, so much of this maritime dominion as she can maintain and defend, without creating any additional expence of native strength; and, upon a footing so connected with that truly valuable dominion which she already possesses, as not to cause any dangerous division of that original strength, so much of this maritime dominion in India may be truly useful and advantageous to her; on any other terms it may be detrimental.

Such is the present state of British dominion in India: and such is the interest of Britain, with respect to future augmentation of dominion in that country. And we have undertaken to plan the construction of an intermediate power or deputation, which, under the national government of Britain, shall effectually and faithfully superintend, enforce, and controul the measures of these several governments that, at present are, or in future may be, subjected to Britain: and which deputation shall of course, in the first place, enable the national government of Britain to establish a regular

system of political government over this whole present or future dominion: and, in the second place, shall constitute a complete system of military government, and secure defence, for all the several branches of this dominion. At present we are on the subject of political government.

The properties requisite to qualify this intermediate power, or deputation, for effectually superintending, enforcing, and controuling the political government of dominion in India, are, first, virtue and integrity, to faithfully and honestly discharge the duties of its office: and, second, power or ability, to effectually fulfil the purpose of its institution. The latter is more easily conferred; but the former is rendered difficult, by sundry obstructions, arising from the nature or disposition of the persons who must necessarily be employed to compose this deputation. For it is needless to observe, that this controuling power cannot be lodged in the subjects native of the dependent dominion; the nature of the government, as well as the nature of their disposition, rendering that impracticable; (as hath been shewn): otherwise this difficulty might be more easily surmounted. But, the Indian subjects being set aside, there remains no choice; this controuling deputation must, *per force*, be composed of British born subjects: whilst the several governments, which it is meant to controul, are at same time executed by British born subjects. And, from this circumstance, it follows, that the personal interest of the party controuling must naturally be the very same, with that of the party controuled: and, of course, the views of both must likewise be the same.

This similarity or sameness of personal interest and views it is that creates the difficulty of conferring virtue, integrity, honour, and fidelity, on the controuling deputation. For it is morally certain, that the similarity of interest and views will, naturally and invariably, draw the party controuling, to concur and join, instead of controuling or opposing, the measures of the party executing, (seeing such measures tend to promote that which is their common interest) provided that this party controuling shall possess the power, and opportunity of so joining interest, with the party executing. And it is no less certain, that this controuling deputation must, unavoidably, possess the opportunity of thus joining interests, unless it can, by some means, be prevented and restrained from joining and uniting the action of its own proper powers, with the action of these powers that are proper to the executive office. Whereas, if it shall be found possible to divide and

separate the action of these two different powers, the one from the other, in a manner so distinct, that each shall act, in the sphere assigned to it, with freedom and liberty; and neither shall have the opportunity of transgressing the limits prescribed, to its own proper department, by the sovereign; then, and in such case, it is not only possible, but certain, that this controuling deputation may, and will be, prevented from joining interests, with the executive deputation; and, consequently, from promoting the very measures which it was meant to restrain. And, from thence I conclude, that the only possible and certain means of conferring, on this controuling deputation, virtue and integrity to faithfully and honestly discharge the duties of its office, is to cut it off from all opportunity of joining the powers of its office, with those of the executive; or of assuming any share in the executive government: in other words, it must be restrained from interfering, either directly or indirectly, personally or by proxy, in the immediate execution of measures, in any one of these governments which it is meant to controul.

But it is evident that, if this controuling deputation shall exist or reside within any one of those dominions whose government it is meant to controul, it will be morally impossible to prevent it from joining its powers, and, consequently, its interests, views, and measures, with the deputed executive power of that government where it resides. For, by virtue of its authority, which from the nature of its office must needs be supreme over the executive deputation, it will usurp at least a part if not the whole power of execution: or otherwise it will, by consent, join and unite its powers with those of the executive, in order to promote their mutual interest, by measures diametrically repugnant to the purpose of its institution. Nor is it possible, in this case, by any art, device or separation into parts, to prevent this usurpation or union: let the controuling power be termed judges, supervisors, officers of the revenue, or what else; and let the office of controuling be divided, into as many parts as can be conceived; still, the difference of term, will not alter the nature of the men employed; nor will the division of parts separate their interest. All the various persons, composing this office, will still be Europeans; the same as these who compose the executive office; and so, all the persons in both offices will be foreign to the country governed, acting by an authority which is deputed mutable and temporary; consequently they will all hold the same view; which is, to amass all the money they can during the short term of their office, in order to transport it to their own country: and as all of them

would, by virtue of their residing within the same government, possess the same powers, and the same opportunities of exerting them, they would all be irresistably attracted, by the omnipotent sympathy of self-interest, to join their several powers, in promoting that which is the common view of one and all of them. In fine, if these controuling and executive deputations, which thus, from the community of the *natale solum*, hold one and the same interest, shall both reside together in one and the same government, and thereby possess the same opportunities, it will be equally impossible to prevent these two deputations, however artfully separated into parts, from joining and uniting their different powers, &c. as it is to preserve separate the guttæ of quicksilver; which, however gently and carefully they are dropt upon the same confined and smooth surface, will meet, join, and conglobate into one united mass. But if the controuling deputation shall be thus permitted to join its powers with these of the executive, and consequently forfeit its virtue and integrity, with respect to that one territorial government where it resides, it thereby becomes disqualified and unfit to controul the measures of any one other government: for the judge who is himself corrupt, is but little qualified to judge or punish corruption in others. I therefore conclude that, in order to preserve the virtue and integrity of this controuling deputation, it is indispensably necessary that it should not reside within the limits of any one of these territorial governments; these being the governments which it is meant to controul.

On the other hand, it is equally certain, that this controuling deputation cannot execute in person, or assume any personal share in the execution of measures, in any one of those governments where it doth not actually reside; it being impossible that it can act personally where it is not personally present. It therefore follows that, by situating or placing this controuling deputation at a sufficiently proper distance from all these several territorial governments, it may be prevented from assuming a personal share in the immediate execution of measures in any one of them. And being thus, by the situation of its residence, cut off from all opportunity of acting personally, it may likewise be precluded from acting secondarily, or usurping by proxy any influence, in the immediate execution of these governments, if it shall, after the manner of the Dutch government at Batavia, be strictly prohibited from exercising its supervising authority any where without the limits of its own fixed residence; and from delegating or deputing its powers to any person or persons, its own

members or others, who shall reside, or may be beyond these prescribed bounds. For though the system of the Dutch government at Batavia is, in many respects, far too rude and unpolished; yet is it, in this particular, most nicely circumscribed: that government being restrained, in the most precise manner, from delegating and transferring its authority; or from deputing any power to examine into cases, of even the most dubious nature, within the subordinates: but to obviate any inconvenience, that might otherwise arise from such restraint, it hath a power to call before it, from the subordinates, all persons or records necessary to information. For the Dutch were well aware, that the supreme government, if it should be permitted to carry its supervising authority on any pretext into the subordinates, would gain an occasion of interfering in the execution of those measures which it was intended to controul.

We must then perceive, that this controuling deputation being seated at a properly sufficient distance from all these territorial governments, and the exercise of its powers being expressly confined to that particular seat of residence, it will, by such means, be effectually restrained from interfering, in any shape, either directly or indirectly, in the execution of any one of those governments which it is intended to controul. And we must farther perceive that, by virtue of such effectual restraint, that clear separation of office, which alone can prevent the junction or union of the powers, interests, and views of this controuling deputation with those of the executive, will be completely accomplished. Seeing that, the action of the controuling power being strictly confined within the limits of its own proper sphere, the executive power must remain at full liberty to act distinctly and freely in the office assigned to it by the sovereign.

The principal source of corruption, and grand stumbling block of virtue, being thus removed, the integrity of this controuling deputation may be established on a firm and solid basis, by skilfully dividing the parts which go to compose it: and, in particular, by clearly separating the political and judicial powers: which, if they shall be judiciously divided into two distinct departments, mutually independent and uninfluenced, will, each of them, act as an effectual check, and powerful impulse, on the other: so as to prevent either from abusing its authority, or neglecting its duty. Whereas, if the political power should, at same time, possess the power of judging, trying and determining, or should even possess any influence over the

judicature, there is danger that it might, on some occasions, sacrifice its duty to its interest. And this is the very capital error of the Dutch system at Batavia, inasmuch as that government, possessing the judicial power, hath thereby the opportunity of perverting justice, sometimes to the prejudice of its constituent, and often to the detriment of its subordinates.

Nor would we be here understood to signify, by judicial power, a simple court of judicature, established for the purpose of deciding litigated cases of property; the judicial power here meant, must extend to every thing that respects a due execution of the jurisdiction and police, in the subordinate governments. Therefore its authority must not be passive, and confined to such matter as shall come before it by complaint; but it must be active, assuming cognizance of all public nuisance, trespass, or delinquency, that may be brought before it by information. For, here, juries may exist with great propriety and efficacy, seeing that the Company will, on account of her commerce, keep a number of servants at this supreme settlement; there will likewise be, no doubt, many free merchants (as they are termed): and, consequently, there will never be wanting a choice of persons unconnected with, and uninfluenced by the political government; and therefore fit to form a grand inquest; as well as petit or special juries, to decide in either criminal cases, or disputes of property. And this judicial power must farther be endued with all proper and necessary officers; particularly an attorney general: it must likewise be divided into distinct courts; resembling, as nearly as circumstances will admit, or occasion requires, the courts of justice in the sovereign country.

Nevertheless, we do not presume to dictate or prescribe the exact or complete form of this judicial power: we would only hint at the main purposes of its institution; a due consideration of which will readily suggest the particular form, to those whose province it may be to construct it. We shall only observe that, in order to confer a due weight on the judicial power, it is not sufficient that it should be independent, in its corporate capacity; the judges and officers composing it must, in their personal capacity, be placed as far as possible beyond the influence of the political power. The salaries annexed to their offices must be such as will afford dignity, as well as independance: whilst, on the other hand, they shall be debarred, under the severest penalties, from holding, either directly or indirectly, any place, post, emolument, or employment, of any nature,

distinct from that of its own proper department. Moreover, the political power should hold no voice in conferring the degrees of this department: that should be vested in the judicial power itself, with reference to the confirmation of the sovereign.

This judicial power may be termed the supreme Court of Judicature, for the whole British dominion in India: to which all the subjects, under the several governments, whether natives or Europeans, may readily appeal, against the oppression of their governors, or the perversion of justice: and, on which they may securely depend for redress; provided it shall be placed above the influence of the political power. This supreme court of judicature would likewise be of inexpressible utility, as a check on the power, and an impulse on the will, of the political branch.

We may add, that a judicious subdivision of the political power, into different departments, might contribute considerably to its virtue.

These are the outlines of that measure, by which we propose to preserve this controuling deputation free from corruption: and we doubt not but, upon this plan, when meliorated and improved by the superior understanding of others, a controuling power may be constructed, which shall be completely qualified, in point of virtue and integrity, to faithfully and honourably superintend, enforce, and controul the execution of political government in those Indian dominions. And this is, by far, the most difficult, delicate, and important part of the undertaking.

For, as to the power and ability, requisite to qualify this deputation for effectually fulfilling the purpose of its institution, that is readily bestowed. The degree of power is altogether in the disposal of the sovereign. And, its efficacy or ability depends, principally, upon the choice of such a situation for the seat of its residence, as shall enable it to keep up, at all seasons, a ready and speedy correspondence with the several subordinate governments,

With regard to the choice of situation proper for the residence of this controuling power; (which is indeed a point of high importance,) we shall readily conceive, from adverting to its nature and the purposes of its institution, that this residence ought to be some convenient sea port; situated at a considerable distance from the limits of all these territorial governments; but, at same time, so centrally near to each, that the

communication, to and from it, shall, in either monsoon, be not only practicable, but certain and speedy. I shall reserve the farther explanation of this intended seat of residence, till I come to treat of the military system; because there are some properties, particularly requisite to a proper centre of military defence: and it is proposed that the same power, and consequently the same residence, that superintends the political government, should likewise direct the military government and defence, of this dominion.

But this supreme controuling power being thus centrally situated, with respect to the several subordinates, as that it shall at all times hold a ready and speedy correspondence with each, will be thereby enabled to effectually superintend, enforce, and controul the execution of political government in that whole dominion. For, in the first place, the ready and speedy communication with all the subordinates, affording to the supreme power an opportunity of obtaining, from each, the most early intelligence of every transaction, incident, or occurrence; as likewise of immediately transmitting the orders and instructions, that may be suitable to the occasion; will cut off from the several governors of the territorial dominions all pretext for acting discretionally. And, in consequence, that despotic and arbitrary power, which hath subsisted under the Company's system, will be completely suppressed. And, from adverting to this circumstance, we shall perceive the importance of a proper choice of situation, for this supreme center of government.

In the second place, this ready correspondence with all the subordinate governments, enabling the supreme power to acquire a minute and complete knowledge of every circumstance, respecting the state and nature of the general police, in this whole dominion, will qualify it for originally planning, and for afterwards improving, all such designs and measures as can contribute to the institution of regularity and good order. It will likewise attain an intimate knowledge of the whole manoeuvre of finance, respecting the mode of collecting as well as appropriating the revenue and taxes: and it will be thereby enabled to project judicious forms, with different offices, as mutual checks upon each other, in that branch: which will serve to remedy that incredible extortion, rapine, and peculation: which, by ruining the farmer of the lands, hath almost totally suppressed agriculture, and greatly depopulated those miserable countries; whilst it hath grievously defrauded

the sovereign of his right. And all these planned modes, being approved and confirmed by the sovereign, would be continued in vigorous and perpetual action, by the vicinity of the supreme political power: and all these several measures, being enacted into laws, the strict observance of them would be effectually enforced by the same vicinity. And thus, that supreme power will, not only establish, but perpetually conserve a just regularity in police, and an exact oeconomy in finance.

In the third place, the supreme judicial power will, by its neighbourhood to these dependent dominions, acquire a just knowledge of the modes, customs, and dispositions of the inhabitants; and, by that, it will be enabled to devise the best forms or offices, together with skilful rules for administering the jurisdiction, in a manner truly effectual, and at same time consonant and agreeable to the humour of the subject. It will likewise be capable of afterwards improving and adding to these forms and rules, as future occasion may require, or better information may suggest. All which forms or offices may, by the approbation of the sovereign, be established into standing courts; and the rules enacted into laws. And a punctual observance of all these laws enacted, either for the regular administration of justice, or conservance of the police, will be completely enforced, by the awe of this supreme tribunal: the communication with which, from all parts of that dependent dominion, being easy and speedy, will afford a ready access and opportunity to all the subjects, of presenting their complaints, against any oppression of their government, or denial, or perversion of justice: whilst the same ready communication will render the trial of all litigated cases, speedy and easy. A mighty innovation this, from the former mode of justice in those dominions; when it was impossible for even Europeans to obtain redress, in our distant precise European courts, against the most glaring oppression of government: and the natives were excluded from even that distant and deceitful prospect of remedy.

And in order that the course of justice may be rendered thoroughly complete, it may be enacted, after the manner of the Dutch, that no person, who hath held any office of power or trust within the subordinates, shall depart immediately from thence for Europe; but shall be obliged to repair to the supreme residence; there to remain for three months; to the end that any person or persons who may, by any means, have been restrained, during the existence of his office, from preferring their complaint against him, on the

score of either public or private trespass, may there have the free opportunity of prosecuting him.

The supreme political power shall immediately appoint to all offices, as well political as military, within the subordinate governments; with reference held to the future approbation, and confirmation, of the sovereign: and it shall preserve regular minutes of all such appointments, orders, and other transactions made in its supreme capacity; which minutes, together with regular and properly vouched accounts of the collection, as well as the appropriation of the revenue, shall be punctually transmitted, by every occasion, to the sovereign. The judicial power shall likewise keep an exact register of all trials, causes, and proceedings; more particularly those of the grand inquest and assizes: this latter to be signed by all the judges and officers of the court, and attested by the foremen, with a majority of the juries: two copies of which shall be regularly transmitted to Britain; one to the sovereign; and the other to the Company; which, as holding a material interest and share in these law proceedings, hath a claim to such participation of knowledge. All which minutes, accounts, and proceedings, being communicated to the sovereign, will enable him to act as an ultimate check on the political government, the finance, and the jurisdiction of that Indian dominion.

Such is the form of this intermediate power, through which I propose to convey, into the execution of government in those distant Indian dominions, that plenary exertion of the sovereign's restraining and compelling power, which, alone, can suffice to prevent tyranny and anarchy. And notwithstanding the materials are, through hurry and want of time, rude, unpolished and coarsely arranged, yet do I flatter myself, that candour will allow them to be solidly good, proper, and fully sufficing to construct, at least, the groundplot, or basis, of a regular political system. Sure I am, the high propriety, nay the indispensable necessity of such a measure, must immediately strike every person who employs his own judgment, however slightly, to consider, first, the nature, interests, and views of the executive government in those Indian dominions; as being foreign, deputed, mutable, and temporary. Second the timid, passive, and slavishly submissive disposition of the native subjects. And third, the distance of situation, betwixt the sovereign residence, and the scene of government; which, rendering the immediate restraint and constraint of the sovereign perfectly

impotent, confers on this foreign executive deputation an unlimited and arbitrary power, of promoting its own personal views and interest, by measures, which tend to the intolerable oppression of the wretched inhabitants, and the utter ruin of those subjected countries; as well as to the mighty detriment of Britain's dearest interest, and the blackest reproach to her reputation. Nor can all this be remedied or prevented, but by such a measure as is here proposed.

And now we shall take a slight glance at the operation of this measure, on the jurisdiction, and police, of the subordinate dominions. And though, for the sake of perspicuity, we confine the view to Bengal alone, as being the most eminent part, yet will the effects be equally felt through the whole.

As to the fundamental establishments of Governors, Councils, &c. these are sufficiently obvious; as likewise are the proper chambers of revenue: and these, with the minutiae appointments of inferior offices, will be more properly provided and improved, by the better judgment, true information, and future experience of the supreme controuling power. Here we mean to offer only one or two hints on the mode of jurisdiction and police.

And first, with regard to the courts of justice, I should propose that the mayor's court at Culcutta should still subsist, as a court of equity for the whole country: and a most equitable court it is, if properly regulated: for the truth of which assertion, I appeal to all those who knew it previous to that alteration of the Company's charter of justice, which rendered it dependent on, and subservient to, the Governor and Council: never was justice more exactly or more expeditiously administered, than it was by this court, previous to that alteration. In order therefore to restore it to its primitive utility, it ought to be restored to its original state. Let the judges or aldermen, who at present compose it, continue such: being servants to the Company, or free merchants, they must be unconnected with, and uninfluenced by the national government. And, in the case of death, or removal, the vacuum to be supplied by the court itself, from amongst the Company's servants, or free merchants only: and if any alderman shall, subsequent to entering on his office, accept of any post or place under government, let that be an express disqualification and vacation of his office; which is to be immediately made good, by the choice of another person, properly qualified. The newly elected aldermen to be presented, for

acceptance, to the supreme court of judicature only. And the officers of this court to be chosen by itself.

But as it would be impossible for the mayor's court to dispatch all the business that might be brought before it, there ought likewise to be a court of law; consisting of a chief justice, with three judges; to be appointed by the sovereign. And this court should guide itself, by such laws as may be enacted for the jurisdiction of those countries; otherwise by equity.

Appeals from this court of law, as well as that of equity, to be made immediately to the supreme court of judicature; and from thence to his Majesty in council.

If it is thought proper, there might be another mayor's court, of the same nature, established at Cossimbuzar, in the neighbourhood of the old capital, Maxadavad.

And as to the forms, for the more universal distribution of justice to the natives, these will be adjusted by the supreme supervising power; as before mentioned. We shall only observe, that their courts of Zemindary and Cutchery are, as they stand at present, a grievous nuisance.

But the noblest institution for protecting the liberty and property of the subject, from the extortion and oppression of their foreign government, and of its inferior train of native harpies, who are infinitely more rapacious than the Europeans, would be that of juries, properly constructed. Let the grand inquest of the country be held at Culcutta, four times in the year: and let the juries, both grand and petit, be expressly composed of Company's servants, or free merchants, Europeans, and none others: the judges of law, or at least two of them, to sit on the assizes: the sheriff to be chosen annually, from amongst the Company's servants.

The powers of this grand inquest, if adapted to the situation of things, must be enlarged beyond these of our juries in Britain; where there are judicial and political aids, that must be wanting in those countries: for instance, the enquiry must not be confined to place, but must extend every where through the country: it must likewise have authority to bring before it all manner of nuisance or trespass committed against the liberty or property of the subject, natives as well as Europeans. And the judges should have no power to reject or postpone the bills, found by the grand jury: but should bring

them on to decision, in turn, as presented. Moreover, as the extent of enquiry may render it impossible for the more distant defendant to appear with his evidences, during the sitting of that assize to which the bill hath been presented against him; let summons be issued, upon the bill's being presented, for such distant defendant to appear at next assizes; or let some other method be found, either by means of the grand jury's meeting a sufficient time before the commencement of trials, or by some extraordinary power vested in the judges or sheriff to produce such distant defendant with his evidences in due time. And as this same extent of enquiry may, on the other hand, produce inconvenience to the subject, by affording occasion to litigious persons of distressing others, by bringing them from a great distance to these assizes, on frivolous or ill grounded complaints, it may be ordered that, where the cause shall appear to the court truly litigious, the plaintiff shall be bound over to stand suit at law, for damages to the defendant: and, one or two examples, of this nature, will prove a barr to frivolous litigation.

And least the judges should, by any means, be influenced to act that part which the Company's governor and council commonly act, when they absurdly preside at these assizes, as his Majesty's judges in their own cause; namely, to dismiss the Court, so soon as the grand jury shall find a bill that may be disagreeable to them; it may be ordered that neither the judges, nor any officer of the Court, shall have power to adjourn the assizes, until all the trials shall be decided; or, otherwise, by the consent of a majority in both juries.

The principal check however upon the conduct of these assizes, would be that of obliging the Court to keep exact registers, of all trials, and proceedings; signed and attested, as before mentioned. And if any part of either jury shall except to the authenticity of such register, which shall be publicly exposed in the Court, then, such dissenting part shall have a right to protest, and assign its reasons. Three copies of which register, with protest, (if any,) shall be dispatched, by the earliest occasion, after each assize. One copy to the supreme Court of Judicature, which will, thereby, have the earliest notice of any abuse; and, with the concurrence of the supreme political power, shall have the opportunity of immediately correcting it. A second copy shall be transmitted to the sovereign; who will

act as an ulterior check on the supreme controuling power. And a third copy to the Company for the reasons before specified.

But, as this single inquest at Calcutta cannot possibly carry justice to the extremes of that extensive country, circulating assizes may be held, at least once, or if possible twice a year, at Muxadavad as the center, and at Patnah as the northern extreme; two judges to go this northern circuit: and the other two judges to go on an eastern circuit, at Dacca. And, as there may not be a sufficient number of Company's servants, properly qualified, to form complete juries at these northern and eastern assizes: I would propose that, to make up any such deficiency, natives should be mixed with the Europeans. Which mixture, if it shall be artfully tempered, in the following manner, would produce all the efficacy of entirely European juries; and, at same time, none of the bad effects, that might be apprehended, from an attempt to confer freedom and impartiality on juries entirely native.

Let, at least, one half of both the grand and petit juries be Europeans; and the remaining part natives: and if it should happen, that there cannot be collected, at the assize factory, and from the neighbouring inferior factories, so many Company's servants as shall make up half the usual number of jurymen; then, let the whole number be diminished, to the sufficing half of Europeans. Let the unanimity of verdict, in such mixt juries, be dispensed with; and let the majority of voices, in either jury, find the bill or verdict; as is the custom in Scotland. And let an additional provision be made to the oath of the jurymen, purporting that he shall not, on any account, disclose the opinion given by any individual, in the jury room.

By this artful mixture, and these precautions, the native jurymen would be liberated from that slavish dread, of future revenge from their own countrymen employed under government; seeing it would be impossible, for these native officers of government, to discover the particular opinion of each individual; which, if the juries were entirely native, they would infallibly do, to the utter ruin of the poor native jurymen. So that the native Jurymen, acting thus with freedom, under the cloke and protection of the Europeans, would answer all the effectual purposes of Europeans. Whilst, being sensible that they owed their freedom and impartiality, together with all the other benefits arising from juries, to their connection with the Europeans; this freedom conferred on them in the jury room, would not in the least diminish their awe and deference to government. The proceedings

at these circuit assizes to be registered and transmitted in like manner as at Calcutta.

These juries would prove the Magna Charta, the palladium, and true security of Indian liberty and property, against the despotism and extortion of their foreign government. And it evidently appears that the virtue of these juries, (as being, at one and the same time, truly effectual to the subject, and perfectly safe to the sovereign,) entirely depends upon the circumstance, of completely excluding the Company and her servants, from the smallest participation in the executive powers of government. But the efficacy of these juries, and of other inferior institutions made through the supreme controuling power, being once felt and known, would speedily induce the natives to purchase perpetual property in lands: seeing they would perceive themselves thoroughly secured in the produce of those lands. And this, being divulged abroad, would draw the inhabitants of the neighbouring countries to the standard of Britain; together with their wealth, and industry. By which means the British dominion in India, which, at present is, through oppression and consequent famine, in a great measure deserted and depopulated, would again be completely peopled and cultivated: arts, manufactures, and commerce would soon be restored to their former state; nay, they would be extended to a degree far superior: and these countries would, of course, be enabled to richly repay Britain for the blessings conferred by her, of perfect security in liberty and property; blessings, never before known in India.

And all this may be effected by means of that intermediate supreme controuling power: which would, not only create, but preserve, the full and vigorous efficacy of all these institutions, in the subordinate dominions. Whereas, if it was even possible, (though indeed it is morally impossible,) to institute, by any temporary means, all these powers, forms, rules, and regulations in those dominions, yet is it evidently certain that, so soon as these temporary means were withdrawn, the virtue and efficacy of all these institutions would immediately vanish, and be suppressed by the power of the executive government; which, from the nature of things, must unavoidably be, either despotic over the native subjects, or cannot exist at all.

But this same controuling power, as it would, on the one hand, by its fixed residence in the immediate neighbourhood, perpetually preserve the action

and motion of all these institutions, like to a power ever present to wind up the springs of the machine; and, so, would check all the bad effects of that naturally necessary despotism in executive government: so would it, on the other hand, effectually support the power and authority of that executive government; and prevent its being encroached on, by an over exertion of the privileges conferred on the subject. For, on this side too, there is a danger; which will be readily comprehended, by those who consider the nature of government; and, at same time, the disposition of human nature. But all danger, of preponderating either scale, would be prevented, by the vicinity of the controuling power: which, holding the balance in its hands, and nicely diminishing from one, or adding to the other scale, would ever preserve a just equilibrium, betwixt the liberty of the subject, and the power of government.

Nor would the institution of new regulations be the only means, in the hands of the controuling power, of preventing the dangerous over exertion of privilege: it would likewise possess the instantaneous power of seizing, or otherwise of ordering to its own residence, all such persons as should prove over troublesome, or dangerous to the due authority of executive government. For, though it would be extremely absurd to trust a power of this nature, immediately in the hands of executive government; which would, infallibly, employ it to its own worst purposes: yet might such power be safely trusted to this controuling government; which could not have the same motives to abuse it.

Nevertheless, we do not mean that this, and all these other powers, should be unlimitedly confided to this controuling deputation: we still preserve a check over it, in the national government. And a most effectual check too; by means of the beforementioned copies of registers, immediately transmitted to Britain, from the subordinates; as likewise by its own minutes, accounts, and registers.

So that here would be a regular gradation of effectual political checks. The privilege of juries, and other institutions in the subordinate dominions, being preserved in vigorous action, by the influence of the intermediate controuling power, would prove an effectual check on the despotism or extortion of executive government; and would thus completely secure the liberty and property of the subject. And the same influence of the controuling power would sufficiently check the luxuriancy of privilege; and

support the power of government; thus preserving an exact poise betwixt both. Whilst the sovereign, at a distance, could deliberately and effectually watch the hand that trimmed the scales.

And thus the institution of this intermediate controuling and impelling power, would completely remove every obstruction arising from the distance of situation: it would serve as an intermediate link of the political chain: or, as a bridge of communication, joining this dependent Indian dominion to the sovereign country. But, all obstruction arising from the distance of situation being thus removed, what difficulty can the national government of Britain find, in administring the political government of that Indian dominion? Upon this plan, that task appears to me more facil, less pregnant with difficulty, charge, or care, than it is to govern any one, the most pretty, of our foreign Colonies: nay it appears equally easy, as it is to govern the neighbouring Isle of Man: seeing that the opposition of the subjects, to the authority of government in this Indian dominion, though they be so infinitely more numerous, is not greater than is the opposition of the few subjects in Man. The only difficulty, that could exist to national government, was that of duly tempering, or abating, the power of the deputed executive government: and it appears, that this may be completely effected by means of this intermediate controuling power; which, in the hands of the sovereign, would act upon the government of this Indian dominion as the pegs or keys upon the strings of a musical instrument; of which one being gently strained, and another properly relaxed, would create, and perpetually preserve, a perfect: harmony, or concord, in this political system.

A PLAN, FOR ESTABLISHING A REGULAR SYSTEM OF MILITARY GOVERNMENT, AND OF SECURE DEFENCE, IN INDIA.

The Company's system of military government and defence in India is, at least, equally defective, faulty, and absurd; and, therefore, doth equally demand reformation, as doth her political system. For the same cause that renders the power of the Company's several deputed governors perfectly arbitrary and discretionary, in civil matters; namely, the Directors having preserved to themselves the charge of immediately directing and superintending those governments; confers, upon these deputed governors, a like arbitrary and discretionary power, in military matters. And surely it is impossible to conceive any thing more ridiculously extravagant, than is this military system of the Company; which affords to each governor of four different capital settlements, the absolute, independent, and discretionary power, of applying the military force of his own government; and likewise of directing the measures of defence: whilst each, of these four governors, holds a particular interest of his own, which is, not only distinct from, but opposite to that of all the others.

Can it be supposed that four men, thus opposite in their personal views and interests, and thus independent of each other, should heartily concur in general measures; or should cordially unite in a system of common defence? Common sense informs us that they will not; and experience convinces us that they do not. For it hath been known that one, of these settlements, hath furnished arms and ammunition; and hath otherwise befriended a power, at open war with one of the others. And, in the case of any one of these settlements being attacked, the others are extremely backward in supporting it; because each, of the four governors, giving the preference to his own particular charge, in which his own personal interest is more immediately concerned, considers all communication of his force,

to any of the other settlements, as a diminution of his own security, and even of his importance. So that, upon such terms, the union betwixt these four distinct, and mutually independent, governments, can scarcely be termed federal.

Moreover, each of these four governors possesses, within the limits of his own government, the discretionary power of making war and peace. And, so, hath the opportunity, whenever it shall suit the purpose of his own personal interest, to pick a quarrel, and engage his government in war, with some one of the neighbouring native states. Nor is this an imaginary evil; or a simple supposition of what may possibly happen; it is a real case; an abuse that hath actually existed. For we can produce several instances where these governors, more particularly on the coast of Coromandel, have commenced, and industriously protracted, wars with the neighbouring states, expressly for the purpose of plunder and peculation.

And, from this discretionary power of peace and war lodged in the hands of these several governors, and the consequent abuse thereof, flow the following evils to the sovereign. First, the governor, thus warring, exhausts and consumes the treasure of his constituent; to the end that he and his associates, may gain occasion to pocket a part. Second, by these offensive wars, he wastes and destroys that force, which was intended by the sovereign for defence: and, thereby, exposes his own charge, naked and defenceless, to the attack of other enemies. And third, by these wanton unnecessary and unjust wars, he provokes the hatred and jealousy of all the neighbouring states; and, thus, converts into enemies, those native powers, who would, otherwise, be amicable and friendly to the sovereign.

To correct these, and many other abuses of a like nature, which flow from this absurd military system of the Company, it is evidently and indispensably necessary, that there should be instituted, one supreme head of military government. Which, being vested with the supreme power of making peace and war in India, shall restrain these several territorial governors, from engaging in unnecessary wars with their neighbours. And which, possessing the supreme direction of the common force, shall, in the case of particular or general danger, apply that force to the most proper and necessary purposes.

Now it is naturally proper, that the same intermediate supreme power, which superintends the political government, should likewise supremely superintend the military government, and defence, of those Indian dominions. And, for this latter purpose, the choice of a proper situation, for the residence of that supreme power, becomes likewise a point of most essential consequence. For it is evident, on the one hand, that this military superintending power ought not to exist in any one of these territorial governments; nay it ought not to reside in the immediate neighbourhood of any one rich native state; because, in either of these two situations, it is liable to be tempted, by views of avarice or ambition, to apply the general force, to its own personal purposes; and, if so, the cure would be worse than the disease: and, on the other hand, it is no less evident, (from the reasons assigned on the similar head in the political system) that this supreme military power ought to be situated so centrically near, to all the several territorial governments, as that it may, at all times and seasons, be capable of keeping up a ready and speedy correspondence with each.

The distant and unconnected situation, of these four capital governments, is likewise a mighty obstruction to a secure system of defence. For, the wind, blowing in those seas for six months from one quarter of the compass, and for the other six months from the opposite quarter, doth, alternately, cut off in a great measure all naval communication betwixt these four governments. For instance, during the violence of the south west monsoon, that is, from the middle of April till the middle of July, it is almost impracticable for ships to pass from Bengal to Madrass: and, during the three more moderate months of that monsoon, this passage is difficult and tedious. And during the north east monsoon, the passage is much the same from Madrass to Bengal. But the communication betwixt Bombay, and these two settlements, is still more obstructed. For Bombay, being situated in lat. 19 deg. north, on the west side of the peninsula of India, it is almost impossible, from the latter end of November till the middle of February, for ships from Bombay, bound for the Bay of Bengal, to round the island of Ceyloan: and, for the other three months of the north east monsoon, they are obliged, in order to weather Ceyloan, to stand over to the eastward almost as far as Atchen head, and back again to the island; a run of about 20 degrees. From the end of April till August, it is almost impracticable for ships from the Bay and bound for Bombay, to round Ceyloan; and in the other three months of the south west monsoon, that passage is difficult and

tedious. And, even in the fair passage, the run betwixt Bengal and Bombay is seldom made in less than a month. Moreover, during the force of the south west monsoon on the west side of the peninsula, that is, from the middle of May till the middle of August, it is extremely dangerous for ships to attempt running in for Bombay: the weather being then so extremely thick, that sometimes a solar observation cannot be obtained for several days together: and if a ship should, in such circumstances, run in for the land, which in such weather is not distinguishable at three leagues distance, and should miss the opening of the harbour, which is but small, it is more than probable that she would not be able to clear the shore, with the wind blowing fiercely right on, and rolling before it a heavy sea. As to Bencolen, circumstances are nearly the same with it, as betwixt Bengal and Madrass.

Now it is evident, that this obstructed naval communication, betwixt the four chief governments must, in many respects, greatly weaken the common defence: and must greatly augment, to the sovereign, the charge, in both men and money, of maintaining and defending those dominions and possessions. Seeing it must necessitate him to keep up, in each of those governments, a force sufficient to defend it against the whole united strength of an offensive enemy, without trusting to any aid from the others: because, otherwise, he runs the risk of losing them all singly, to a force that can overpower but one of them.

But all the danger, inconveniences, and extraordinary expence, arising from this obstructed naval communication, may be obviated and removed, by establishing one supreme center of military defence; so situated, with respect to the several parts of those truly valuable territorial dominions, as that the communication betwixt it and them shall, in either monsoon, be not only practicable but speedy and easy. For it is evident that, in such a situation, this supreme center of defence could, at all times, receive speedy notice of any impending danger, or actual attack; and that, upon such notice, it could immediately transport its own garrison, by sea; as well as collect aid from the other settlements. So that the garrison of this supreme center of defence would act as an army of observation; ever ready to pour in, at any quarter, on the back of an aggressive enemy. And, of course, such a center of defence must connect, and unite, the strength of all the several parts of British dominion in India.

Now it appears that, the situation of residence, becomes a circumstance, highly essential to the efficacy of each purpose, proposed from this supreme intermediate power. And it farther appears that one, and the same, situation is required, for all these several purposes: seeing that, from a convenient naval port, situated at a proper distance from the limits of all the territorial governments; and, at the same time, so centrally near to each, that the communication with all the several parts of dominion will be speedy and easy; this supreme power would, in the first place, completely and effectually, faithfully and honourably superintend, enforce, and controul the measures of political government, as well as the conduct of military government: and, in the second place, it would unite and connect the general strength of those dominions, and completely secure the defence of the whole.

But, of the several settlements possessed by the Company in India, Bengal and Madrass are evidently disqualified for this seat of residence; not only because the communication betwixt them and the other settlements is, at certain seasons, altogether cut off; but because they are, themselves, territorial governments; and therein, the very object to be controuled. Bencolen is, in every respect, out of the question. And, there then remains only Bombay; which is so far possessed of the properties requisite to this residence, in that it is, at present, not greatly embarked in territorial dominion; and is, likewise, a sea port. But in respect of communication, with the truly valuable possessions of Britain in India, Bombay is altogether unfit to be either the residence of the supreme controuling power, or yet the center of defence; as must appear from the preceding description; which was more particularly enlarged, for the express purpose of evincing this. Far from being a proper center of defence, all the force that is lodged at Bombay becomes detached, and completely lost to the defence of Britain's truly valuable possessions; at least on any sudden emergency. Indeed Bombay is, in every thing, respecting either dominion or commerce, a dead load, and useless settlement; saving it be for the sole purpose of a naval port, or a place for refitting our squadrons.

But the choice of Bombay for a naval port, is the most dangerous and fatal error, in the whole absurd system of the Company's defence: seeing that, by this absurd choice, Britain loses the use of her naval force; which is her capital strength of defence, against the attack of France, her only dangerous

enemy in India—As will appear—It is impossible that ships, the best fitted from Europe, can subsist, in those seas, for two years, without a thorough repair: and more particularly in time of war; when action hath happened, and is again expected. And this thorough repair they cannot obtain but in a naval port, properly filled with docks, or careening platforms. Bombay is the only naval port, thus fitted by Britain, in India; consequently the squadron of Britain must retire, at least every second year, to Bombay, for repair. But the British squadron being once retired to Bombay, (as is common, in October,) which is situated in lat. 19 degrees north, on the west side of the peninsula; it is as effectually excluded, for five months, from the bay of Bengal, and more particularly from Bengal itself, as if it was still in Europe. And, during these five months, the enemy may either scour that Bay with single cruizers, or she may transport, and, without opposition, land a force in Bengal; and these said five months are the very fittest in the whole year for land operations. This must be thoroughly understood by all those who are acquainted with the navigation of those seas: and could be here readily demonstrated; was it not that, by publickly pointing out our own weakness, we should point out to the enemy her strength. It is most certain that, if France understands her own advantage, (and it is to be apprehended she is but too well acquainted with it): she may either waste and consume the British squadron, through preventing its repair; or otherwise she may effect every purpose, against Bengal, nay against Madrass, with as great security, as if there was no British squadron in India: ever so long as Britain shall continue her only naval port at Bombay. Nor is there any alternative. For as to that ridiculous notion, of carrying a squadron of large ships up the river of Bengal to repair, no commander in his senses would, in the time of war, when he expected to be equally matched by the enemy, so soon as the season arrived, incur the risk of losing some of his ships, in the passage up and down that incredibly dangerous river; and still less would he subject himself to the certainty of losing half his hands, by that putrid unhealthy air at Culpee, or Ingelee. Neither would he be mad enough, in the while of a hot war, to use that dangerous expedient, of half repairing at Trincamalay; where he is liable to be surprized by an enemy, in the act of repairing. In fine, so long as Bombay continues to be our only naval port, our commanders must, of necessity, either waste and lose their squadron; or else they must retire to Bombay, at the least, once in two

years; and, thereby leave the seas, with all our valuable possessions in the Bay of Bengal, freely exposed to the attack of an enemy, for five months.

It therefore follows that, if Britain means to avail herself of her naval force, which is the principal defence of her dominion and commerce in India, she must establish a proper naval port, on the east side of the peninsula; because, on that side lay all her truly valuable possessions, and commerce. And that port, which I mean to propose, is in every respect completely qualified for this purpose: though I cannot, in this publication, specify the place; lest the enemy should anticipate, and take the advantage of our shameful neglect.

I am sensible it will be immediately exclaimed that we have already too many possessions in India; and that this is no time to increase our settlements there; and thereby to increase the drain of our native strength, as well as the expence of treasure.

But, to this, I answer, that this new establishment would not encrease the number of our capital settlements in India: on the contrary, it would diminish it, from four to three: for it would suppress, in the first place, Bombay; which is in every respect a truly useless settlement; and would therefore be exchanged for this new settlement; which would serve to connect the whole strength of this dominion; as well as to promote a variety of other very important purposes. In the second place, Bencolen would be reduced to the degree of a subordinate, immediately under the direction of the resident at this new settlement; and completely secure under its protection.

As to the drain of native strength, this establishment would, instead of adding, considerably decrease it: for the garrison, together with the artillery, &c. of Bombay, would be transported thither; as likewise would the better part of the garrison at Bencolen: and these two garrisons, being placed there, would form an army of observation, for all our valuable possessions, as hath been described; consequently the territorial governments would not demand that degree of force, which is requisite at present, when each stands on its own bottom.

And with regard to the expence of treasure, I shall only observe that, it is most unaccountably absurd in Britain to send out to India, a squadron of 17 ships of the line, besides frigates, (as she did in last war,) for the protection

of her dominion and commerce in that country; which squadrons become evidently unprofitable to that purpose, through the circumstance of wanting a properly situated naval port; when less than a single year's charge, of such squadron, would suffice to completely fit up a naval port, so situated as that, from thence, her naval force would completely effect its intended purpose. For I affirm, that the port which I propose would be completely fitted up, in every respect, as a naval port, for less expence than one year's charge of such squadron; seeing that I do not propose docks, but platforms for careening, as at Batavia; and these are prepared, in infinitely less time, and at much less charge than docks; whilst they are far more convenient and expeditious for repairing large ships, than these docks at Bombay. And, as to the fortification immediately requisite, it would be but little expensive, and would demand but little time to rear it: because it would be perfectly accessible to the ships; and so, whilst it protected them, would be protected by them.

Moreover no part of the treasure, expended on originally fitting this naval port, would come immediately out of Britain's proper treasury; for the whole would be defrayed by the dependent dominion in India. And this new establishment would, in a very little time, not only support its own charge, but would richly reimburse Britain for her original cost. Seeing it would, in the first place, as a colony or settlement, yield her immediate treasure, together with sundry commodities peculiar to itself; and, in a little time, it would, under proper conduct, produce rich manufactures. In the second place, it would, as an Emporium, (for which purpose it is perfectly adapted by its situation,) greatly improve the commerce of Britain in India: and as a central magazine or warehouse, for the commodities of China as well as India, it would reduce the term of the Company's voyages to one year; and, thereby, reducing the expence of her carriage nearly one third, it would enable her to sell cheaper; and consequently advance her commerce in Europe. Likewise the Company's ships rendezvousing and departing from this port for Europe, under proper convoy, this would secure her trade from that imminent danger to which it is exposed, from her ships rendezvousing singly, at that button of an island, St. Helena: a circumstance that may, in the very first year of a French war, completely ruin this Company; as that enemy is now perfectly acquainted with her route. Now Bombay is perfectly useless to all these, and indeed to every other purpose; as can be

readily demonstrated: and the whole benefit derived from it, as a colony or settlement, in the year, doth not suffice to defray one month's expence.

But this new establishment, being once fitted up as a naval port, from whence the squadrons of Britain can, in either monsoon, command all her valuable possessions; this same establishment would, at same time, completely suit for the residence of that supreme intermediately superintending power. For this port is situated, at such a distance from all the territorial governments, as would suffice to effectually prevent the controuling power, from interfering in the immediate execution of government. And, having said that it is perfectly well situated for a naval port, it follows that the communication, betwixt it and all the parts of the British dominion in India, must be speedy and easy, in either monsoon: and consequently that, from this residence, this supreme power can effectually superintend, enforce, and controul the measures of political, as well as of military, government, in this whole dominion. And, being the center of naval defence, it must be the only proper center of land defence: seeing the squadron will be ever at hand, to transport its land force, to any part of this dominion, that may be in danger.

And thus have I accomplished that which I proposed: having planned the design of an intermediate power which, in such a situation as hath been described, would establish a completely regular system of government, civil as well as military, in the whole present or future dominion of Britain in India: nay which would, in the hands of national government, render the task of governing this Indian dominion, as facil and easy, as it is to govern the small Isle of Man. And, the seat of its residence being at same time the center of naval and land defence, it would completely connect the, otherwise, divided strength of the several governments: and would establish the general defence, upon a footing so secure, that no enemy, either European or native, would dare to attack British dominion in India. It likewise appears that the drain of native strength, requisite to maintain this whole dominion, would but little exceed that which Britain expends on maintaining the two barren fortresses, of Gibraltar and St. Philips's. Whilst no part of the pecuniary charge, of either establishing or afterwards supporting this system of government, nor yet of the land and even naval defence, would come out of the treasury of Britain; but would all be defrayed by the dependent dominion.

I have farther demonstrated the moral impossibility of governing and maintaining this Indian dominion, by means of the Company; upon any other terms, than these, of constituting her sovereign at home as well as abroad; and of conferring, upon her Directors, the sovereign execution of government in Britain, as well as in that dependent dominion.

And I have endeavoured to rouse and awake the nation, to some sense of, and regard to, the interest she holds in this Indian dominion; by a slight descriptive sketch of the nature, and degree, of benefit received by her from it, for some years past. And, as the sensation received from fact and experience makes ever a stronger impression on the mind, than that which is conveyed by speculative argument, I shall here again apply to the experience of the public, on this topic; which cannot be too much inculcated, nor presented in too many different points of view; at this truly critical juncture, when nothing less than the most speedy application, of the most vigorous measures, can prevent the total loss, of this most important object to Britain; either through the final ruin of the countries themselves; or, otherwise, by the assault of enemies.

Britain feels a general failure of credit, not only in the East India Company, but in individuals: and this failure of credit she can ascribe to no other cause, than to some extraordinary defect of numerical circulation, or a deficiency of numerical specie, sufficient to support the wonted credit of paper. How happens this want of numerical specie to be so severely felt, all of a sudden; or from whence should such defect arise? Assuredly from a decrease of her wonted influx of numerical specie; whilst her drain of that specie continues to be at least the same as formerly. But what channel or source, of Britain's influx, hath been dried up so suddenly, as to create this surprizing failure of numerical circulation? We have shown it to originate in Indian dominion; which being, through misgovernment, reduced to a ruinous state, the consequent wonderful decrease of revenue, hath obliged the Company, to absorb and dry up that channel of Indian private fortunes; which, till within these two years, used to convey into Britain, by foreign Company's bills, &c. at least 700,000 l. *per annum*, in numerical specie, or what is equivalent. And as Britain hath, during the two years that this channel was dried up, been continuing that drain, which she could barely support, when aided by that private fortune influx, it is plain that, within these two years, she must have diminished the standing stock of her

numerical circulation, at least, 1,400,000 l. And one year, more of only an equally decreased degree of influx, will diminish her circulating stock 2,100,000 l. and so on. But a total deprivation of the influx received, for some years past, from Indian dominion, will, annually, double the diminution of circulating stock.

And, from this view, the nation may draw the following just inferences: first, the mighty value and importance, of this Indian dominion, to Britain; in point of financial aid; as well as in other weighty respects. Second, the mighty alteration of circumstances, in these Indian countries, since the time they became subjected to the dominion of the Company; as also, the present ruinous state of that dominion. And from these two inferences she may deduce, that conclusion which hath been just mentioned, that nothing less than the most speedy application of the most vigorous and effectual measures, can possibly save those countries from final ruin; and Britain from consequent bankruptcy, poverty, loss of credit, of commerce, navigation, naval power, &c.

I have, in this hasty production, sketched out the nature of the necessary measures; but the application of these measures depends entirely upon the nation's exerting her own attention. I am far from meaning to work upon the passions, I apply only to the reason and understanding of men; for had not respect to decorum, and to the dignity of government, restrained me, I might, on this subject, have thrown out many things, that must have excited discontent and indignation. Nevertheless the importance and urgency of the case obliges me to add, (and, without this, all I have said can avail nothing,) that unless the nation shall exert herself most vigorously in this her own dearest concern, she must not look for any such effectual measures, as will suffice to prevent these disasters.

For the nation must consider, that her present administration consists of the very men who transacted, and (by their truly reverberating eccho) confirmed, to the Company, the second^[2] grant of the Dewanny: knowing that this Dewanny was nothing other than the sovereignty of a mighty dominion, dependent upon the Crown, and Nation, of Britain: and, consequently that, by subjecting the numerous inhabitants of those countries to the dominion of a few merchants, incapable of administering any sort of government, they were consigning over to tyranny and anarchy, intolerable oppression and ruin, many millions of men, who were, to all

intents and purposes, subjects of Britain. And they are the men who, during the four years that elapsed since that grant, have furnished the force to support this tyranny and anarchy: and, in spite of——enacting a farce, wherein the Directors were compelled to perform the same part in Europe, that the native Nabobs have exhibited in India. It cannot, therefore, be expected that they will, willingly, change their plan of conduct: seeing that, besides their former motives, they have the additional one of obstinacy; or shame of standing self-condemned, for past mismanagement, should they now alter their measures. It is rather to be supposed that they will continue the cloke of the Company; together with the Directorial farce: and that, to support the broken credit of the Company, (broken by collusive management,) they will, through eccho, grant her a power, to force her paper upon the public, for its money. As also that, under the pretext of honouring the nation with some share in the charge of this sovereignty, (under the Company, but no share in the profits,) they will gradually thrust her shoulders under that whole load, which, as the Company must manage it, will soon become intolerable. And, by the aid of these fresh reinforcements, they will juggle it and bungle it, and bungle it and juggle it on, for one, or possibly two, years longer: and then Nation and Company will both tumble together, into the pit of bankruptcy, perdition, and despair.

But shall the nation, with eyes open, suffer the pilot to crowd stemlings on the rocks, which have already grazed the ship's bottom? No, we must about ship, and call another hand to the helm. Matters, it is to be hoped, are not yet past remedy; the channel is obvious; if the nation will but put to her hand. His Majesty can have no real interest but what is common with that of his people: and, however the views of the Crown may, in some cases, differ a little from these of the people; in this particular case they must both exactly concur. He will, here, hearken to the voice of his people: and a little popular heat will force into administration something of that patriotic ambition, fire, spirit, and enterprize, which alone can save this nation from dreadful impending misfortunes.

But if the nation, sunk in the bed of slavish sloth, inebriated with the transforming Circean cap, enervated and emasculated by the lewd embraces of sensual pleasure, shall slight and disregard her own dearest concerns: like the prodigal debauchee, who chides from him the faithful friend that attempts recalling him to sober reflection; and implicitly confides in the

management of a steward, who hath already wasted the better part of his fair patrimony: then let the nation, some two or three years hence, recollect, that she was advised of her danger, by a hasty production, issued about the middle of January, 1773: though not thought of, until that most disinterested of all possible ministers had, by way of remedying all evils, dispatched *his Secret Committee* to the India House: there to inspect the Company's private œconomy: a thing, with which neither law, justice, government, nor nation hath any thing to do; and which, unless in cases of bankruptcy, is sacred to the meanest individual. As if, from the Company's books of accounts, it was possible to discover the cause of abuse in the government of those Indian dominions: or, as if schemes of saving to the Company, one shilling *per* ton, freight of her cargoes: or, three pence *per* pound, in warehouse room, would retrieve the, almost ruined, Interest of Britain in India.

FINIS.

Footnotes

1. As it is impossible to exactly ascertain the annual amount of this private remittance made through various channels, it will no doubt be alledged, that we have exaggerated this article; and yet we have certain ground to affirm, that it is greatly underrated. Sure I am, if we can suppose that the amount of such remittance made from 1757 to 1770 hath been in any degree equal to that of the two following years, (which is ascertained,) and we have no reason to suppose that there hath been any considerable difference, the sum assigned by us will be greatly under mark. For no sooner did the English Company, in 1770, open her treasury, to receive money for remittance to Britain, than there was poured in at her three capital settlements above 1,400,000 l. for which bills were granted, presented, and accepted by the Company, and nearly two thirds of this sum was borrowed in Bengal. And in 1771 she hath borrowed in Bengal alone, under the promise of remittance, a sum perhaps exceeding the whole loan of the former year; though the bills have been postponed by her agents in Bengal,

on account of the Company's inability to answer them. Such was the remittance of British private fortunes for these two years, through the channel of the English Company alone: and we have good reason to suppose, that there may have been some made through other channels. And these enormous sums, borrowed by the Company, as sovereign, for the expence of Bengal, in these two years, will serve to show the mighty alteration of affairs in that country since 1765.

2. We must make a wide difference betwixt the first and second grants of this Dewanny, (as it is termed.) The first grant was made for only two years, at a time when the then ministry were in a great measure unacquainted with the nature of the thing which they granted: having been deceived by base art: nor did this ministry, in the course of their administration, exert any manner of ministerial influence over the Directors. But far different were the lights, as well as the conduct of that ministry which, on the expiration of the first two years, renewed that grant for the long term of five years.

Transcriber's Notes:

Missing or obscured punctuation was corrected.

Typographical errors were silently corrected.

Spelling and hyphenation were made consistent when a predominant form was found in this book; otherwise it was not changed.

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